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"FOR INFORMATION CONCERNING CERTAIN RISK FACTORS WHICH SHOULD BE CONSIDERED BY PROSPECTIVE INVESTORS, PLEASE REFER TO "RISK FACTORS" ON PAGE 16

PACAM EUROBOND FUND

(Authorised and registered in Nigeria as a Unit Trust Scheme)

INITIAL PUBLIC OFFERING
OF
10,000
UNITS OF $100 EACH AT PAR
PAYABLE IN FULL ON APPLICATION

FUND MANAGER

PAC ASSET MANAGEMENT LIMITED RC 695281

ISSUING HOUSE

PAC CAPITAL LIMITED RC 208597

APPLICATION LIST OPENS: March 28, 2019
APPLICATION LIST CLOSES: April 25, 2019

THIS PROSPECTUS AND THE UNITS WHICH IT OFFERS HAVE BEEN REGISTERED BY THE SECURITIES & EXCHANGE COMMISSION. THE INVESTMENT AND SECURITIES ACT CAP I24 LFN 2007 PROVIDES FOR CIVIL AND CRIMINAL LIABILITIES FOR THE ISSUE OF A PROSPECTUS WHICH CONTAINS FALSE OR MISLEADING INFORMATION. REGISTRATION OF THIS PROSPECTUS AND THE UNITS WHICH IT OFFERS DOES NOT RELIEVE THE PARTIES FROM ANY LIABILITY ARISING UNDER THE ACT FOR FALSE OR MISLEADING STATEMENTS CONTAINED OR FOR ANY OMISSION OF A MATERIAL FACT IN THE PROSPECTUS

This Prospectus is dated March 20, 2019

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1. ABRIDGED TIMETABLE

Date	Activity	Responsibility
March 28, 2019	Application List Opens	Issuing House
April 25, 2019	Application List Closes	Issuing House
May 2, 2019	Receiving Agents make Return	Issuing House/Registrar
May 13, 2019	Forward allotment proposal and draft newspaper advertisement to SEC	Issuing House
May 16, 2019	Receive SEC Clearance of Allotment Proposal	Issuing House
May 17, 2019	Payment of Net proceeds of the Offer to Custodian	Issuing House/Receiving Banks
May 20, 2019	Allotment Announcement	Issuing House
May 27, 2019	Return Rejected Application Monies	Issuing House/Registrar
May 28, 2019	Distribution of Units Certificate	Registrar
June 3, 2019	Forward Report on Completion of Offer to SEC	Issuing House

**All dates provided are subject to change by the Issuing House in consultation with the Fund Manager and subject to obtaining the relevant regulatory approvals*

2. SUMMARY OF THE OFFER

The following is a summary of the terms and conditions of an investment in the PACAM Eurobond Fund. Prospective investors are advised to read the entire Prospectus and the Trust Deed constituting the fund.

Investors are advised to seek information on the Fees, Charges and Operating expenses before investing in the fund.

1.	**FUND MANAGER**	PAC Asset Management Limited ("PACAM" or "the Company")
2.	**ISSUING HOUSE**	PAC Capital Limited
3.	**TRUSTEES TO THE FUND**	CSL Trustees Limited
4.	**CUSTODIAN**	United Bank for Africa Plc (Global Investor Services Division)
5.	**THE OFFER**	10,000 Units of $100 each at par in the Fund
6.	**METHOD OF THE OFFER**	Offer for Subscription
7.	**NATURE OF THE FUND**	The Fund is a Foreign Currency-denominated Fixed Income Fund constituted under a Trust Deed, and will invest in Fixed Income instruments. As an open ended Fund, it will be opened to investors for subscription through the Fund Manager after the full subscription of the initial 10,000 units issued. As a result, the Fund Manager will issue additional units when required, with the consent of the Trustees, subject to the registration and approval of the Units to be offered by the Commission. The Fund will seek to achieve an efficient balance between capital appreciation and income for investors with modest risk appetite. The Fund will invest in Fixed Income securities such as FGN Eurobond Instruments, Sub-National Eurobonds, Corporate Eurobonds, and other fixed income market securities.
8.	**TARGET INVESTORS**	The Fund will seek to achieve an efficient balance between capital appreciation and income for investors with modest risk appetite who require liquidity. The Fund welcomes participation from both resident and non-resident Nigerian retail and institutional investors.
9.	**UNITS OF SALE**	Minimum of 10 Units and multiples of 1 Unit thereafter.
10.	**OFFER PRICE**	$100.00 per Unit.
11.	**OFFER SIZE**	$1,000,000.00
12.	**PAYMENT TERMS**	In full on Application
13.	**MANDATORY SUBSCRIPTION**	5% of the Offer will be subscribed to by PAC Asset Management Limited in compliance with current regulations issued by the Commission that the promoters of unit trust schemes in Nigeria must subscribe to a minimum of 5% of the initial issue of such schemes and hold such units throughout the life of the Fund.

2. SUMMARY OF THE OFFER

14.	**OPENING DATE**	**March 28, 2019**
15.	**CLOSING DATE**	**April 25, 2019**
16.	**USE OF PROCEEDS**	The Offer proceeds will be used in accordance with the Fund's investment objectives and policies. The Offer costs and expenses amounting to $28,224.28. (which includes printing, distribution, and advertising expenses) shall be offset from the Offer proceeds.
17.	**DIVIDEND PAYMENT**	The Fund Manager will declare dividends and make distributions on an annual basis from the net investment income. Unit holders may elect to receive their Distribution in "cash" i.e. via electronic transfer or to re-invest their distribution by purchasing additional Units of the Fund. Distribution payment option shall be selected at the point of subscription.
18.	**MINIMUM INVESTMENT PERIOD**	The minimum holding period for an investment in the Fund is 180 calendar days from the date of purchase. The minimum holding period commences from the Allotment Date for subscribers under the IPO of the fund.
19.	**REDEMPTION**	Subscribers may redeem all or part of the Units held at any time after allotment. Redemption will be paid within 5 working days after the relevant documents have been submitted to the Fund Manager. Minimum permissible holding after redemption is 5 units or such balance as advised by the Manager from time to time. A Unit Certificate will be issued for the new number of units held in the case of partial redemption. Redemptions within 180 days from the date of subscription for Units will attract a fee in an amount equal to 10% charge of positive return.
20.	**QUOTATION**	Application has not been made to the Council of The NSE for the listing of the 10,000 units of $100.00 each at par of the PACAM Eurobond Fund by Memorandum. However, the Fund Manager on the successful completion of the Offer, or at a later date, may seek a Memorandum Listing of the Fund on The NSE.
21.	**STATUS**	The Units qualify as securities in which Pension Assets can be invested under the 2014 Pension Reform Act and in which Trustees may invest under the Trustee Investment Act Cap T22 Laws of the Federation of Nigeria 2004.
22.	**OVERSUBSCRIPTION**	Any oversubscribed portion would be absorbed subject to the registration of such additional Units with the Commission.
23.	**INVESTMENT RISKS**	The risks associated with an investment in the Fund are set out in the section titled **"Risks of investing in the Fund"**.

2. SUMMARY OF THE OFFER

24.	**UNDERWRITING**	At the instance of the Issuer, this Offer will not be underwritten.

25. FORECAST OFFER STATISTICS:
(Extracted from the Reporting Accountants' Report)

The Fund Manager is of the opinion that subject to unforeseen circumstances and based on the assumptions stated on page 21, the profit before distribution for the years ending 31st December, 2019, 2020, 2021 and 2022 will be:

Year Ending December 31	2019	2020	2021	2022
	=N= '000	**=N= '000**	**=N= '000**	**=N= '000**
Gross Income	87,018	91,840	112,731	138,409
Less Operating Expenses	49,630	21,514	25,430	29,841
Less: Taxation	-	-	-	-
Net Income	**37,388**	**70,326**	**87,301**	**108,568**
Less: Dividend Payments	18,694	35,163	43,650	54,284
Opening Net Asset Value	970,236	988,930	1,315,164	1,614,815
Net Additional Investments during the Year	-	291,071	256,000	314,233
Closing Net Asset Value	988,930	1,315,164	1,614,815	1,983,332

26.

FORECAST YIELD

	2019	2020	2021	2022
	=N= '000	**=N= '000**	**=N= '000**	**=N= '000**
Net Asset Value, Beginning of Year	970,236	988,930	1,315,164	1,614,815
Additions During the Year	-	291,071	256,000	314,233
Undistributed Net Income	18,694	35,163	43,650	54,284
Net Asset Value, End of Year	**988,930**	**1,315,164**	**1,614,815**	**1,983,332**
Increase in Net Asset Value	18,694	326,234	299,651	**368,517**
Forecast Earnings Yield at Offer Price	**3.78**	**5.35**	**5.41**	**5.47**

27.	**GOVERNING LAW**	The Offer Documents will be governed by and construed in accordance with the laws of the Federal Republic of Nigeria.

3. CORPORATE DIRECTORY OF THE FUND MANAGER

FUND MANAGER	**PAC Asset Management Limited** 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria Telephone: 01-2716896 Email: info@pacassetmanagement.com Website: www.pacassetmanagement.com	
DIRECTORS OF THE FUND MANAGER	**Chris Oshiafi** 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria.	**Chairman**
	Sina Alimi 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria.	**Director**
	Eric Okoruwa 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria.	**Director**
	Bamidele Ige 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria.	**Managing Director**
COMPANY SECRETARY	**Abiola Oladiti** 8A Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria.	

4. PROFESSIONAL PARTIES TO THE OFFER

ISSUING HOUSE	**PAC Capital Limited** 8A Elsie Femi Pearse Street Victoria Island Lagos
TRUSTEES TO THE FUND	**CSL Trustees Limited** 2nd Floor, Primose Tower 17A Tinubu Street Lagos
SOLICITORS TO THE FUND	**Hermon Legal Practioners** Penthouse Suite Theodolite House 306 Ikorodu Road, Anthony Lagos
REPORTING ACCOUNTANTS	**Alatta Nzewi Oyeka & Co.** 1, Oyediran Street Off Bode Thomas, Surulere Lagos
REGISTRAR	**PAC Registrars Limited** 122, Bode Thomas Road Surulere Lagos
CUSTODIAN	**United Bank for Africa Plc** **(Global Investor Services Division)** UBA House (12th Floor) 57 Marina Lagos
RECEIVING BANKER	**Sterling Bank Plc** Sterling Towers 20 Marina, Lagos Island Lagos

5. THE FUND

5.1 NATURE OF THE FUND

The Fund is a Foreign Currency-denominated Fixed Income Fund constituted under a Trust Deed, and will invest in Fixed Income instruments. As an open ended Fund, it will be opened to investors for subscription through the Fund Manager after the full subscription of the initial 10,000 units issued. As a result, the Fund Manager will issue additional units when required, with the consent of the Trustees, subject to the registration and approval of the Units to be offered by the Commission.

The Fund will seek to achieve an efficient balance between capital appreciation and income for investors with modest risk appetite. The Fund will invest in Fixed Income securities such as FGN Eurobond Instruments, Sub-National Eurobonds, Corporate Eurobonds, and other fixed income market securities.

5.2 THE INVESTMENT OBJECTIVES OF THE FUND

The objective of the Fund is to generate steady stream of Foreign Exchange cash flow on subscribers' investment. The Fund will invest in Sovereign Eurobond (FGN), Non-sovereign Eurobond (States & Corporate) and supranational Eurobond instruments. Investment decisions will be based on credit quality of the instruments and fundamental value of the instruments.

The Fund Manager would invest funds in such a manner as to ensure long term capital appreciation, capital preservation and generate a stable stream of income and assured liquidity to investors.

The Fund Manager would monitor all exposures keenly and seek preservation of the investment ahead of possibilities of high returns.

In summary, the Fund Manager would always seek to maximize risk-adjusted return of the investments**5.3**

INVESTMENT STRATEGIES

The Fund Manager strictly adheres to the 'Prudent Man' rule in making investment decisions and will bring that to bear in managing the fund. This rule requires that person(s) charged with the responsibility of making investment decisions on behalf of others should act with prudence, discretion, intelligence and regard for safety of capital as well as income.

It will adopt a bottom up approach that will examine the fundamentals of securities in which it will invest. It will make investments in securities and assets only where it sees discount to intrinsic value.

The Fund being an open-ended collective investment scheme invests in Fixed Income securities such as FGN Eurobond Instruments, Sub-National Eurobonds, highly rated Corporate Eurobonds, and other fixed income market securities. An investible security must have an investment grade rating from at least one recognized local rating agency registered with the Securities and Exchange Commission.

5. THE FUND

5.4 ASSET ALLOCATION STRATEGY

The fund manager has established target weightings of asset classes aimed at achieving the long term investment objectives of the fund. These target weightings fall within asset allocation bands for each asset class which has been provided to absorb the effects of shocks in the market and to provide flexibility of allocation to the fund manager..

Instrument Asset Class	Lower Limit (%)	Weighted (%) Upper Limit	Target Weight (%)
Sovereign, Supranational & Corporate Bond	70	100	85
Money Market Instruments/cash	0	30	15
Cash	0	5	0

It is the duty of the Fund Manager to ensure that the Fund's Assets are allocated in consonance with the Asset Allocation Framework in its bid to achieve the Funds objectives. The Asset Allocation Framework is based on the principle that specific asset classes have different investment characteristics and, as such, the fund's assets must be diversified to achieve the primary objective of the fund.

5.5 INVESTMENT COMMITTEE

The Investment Committee shall meet to review the performance of the Fund periodically. The Committee's responsibilities shall include among others the following stated below:

- Oversight of the Fund's investment management activities.
- Ensuring adherence to the Fund's investment policy as set out in the Trust Deed and other statutory regulations.
- Ensuring adherence to Fund's policy guidelines and asset allocation strategies. Monitoring the investment performance of the Fund by reviewing the investment risks and the investment returns of the Fund's assets.

The Investment Committee shall consist of the following:

- Sam Onukwue - Independent Member
- Chris Oshiafi - Director, PAC Asset Management Limited
- Sina Alimi - Director, PAC Asset Management Limited
- Eric Okoruwa - Director, PAC Asset Management Limited
- Bamidele Ige - Managing Director, PAC Asset Management Limited
- Austin Eguaoje - Compliance & Control, PAC Asset Management Limited
- Samuel Adesanmi - Managing Director, CSL Trustees Limited

5.6 INVESTMENT MANAGEMENT

The PACAM Eurobond Fund shall be managed by a team of professional portfolio managers, whose responsibilities to the Fund among others shall be as follows:

- Exercise due diligence and care in deploying the Fund's assets

- Apply investment discretion in the decision to buy, hold, or sell the Fund's assets in accordance with the investment objectives and asset allocation framework. This shall include the maintenance of adequate cash levels to meet redemption obligations
- Achieve best execution on all transactions raised on behalf of the Fund
- Undertake such other responsibilities as stated in the Trust Deed, ISA and the Rules and Regulations made pursuant to the ISA ("SEC Rules")

5.6 INVESTMENT DISCRETION

The Fund's assets shall be invested at the discretion of the Fund Manager in accordance with the Trust Deed, the objectives and asset allocation framework of the Fund.

The Fund Manager shall be responsible for all the decisions regarding the investment strategies, types, amounts, and timing of the investments to be undertaken by the Fund.

The investment strategy shall be reviewed periodically by the Fund Manager in light of prevailing market conditions and reviewed accordingly in the best interest of the Fund.

5.7 REBALANCING POLICY

The Fund Manager shall take necessary steps to ensure that the asset allocation of the Fund is in line with the requirements of the investment policy. This shall include periodic review and, as a result, actions to rebalance the portfolio. The Fund Manager shall notify and obtain the Commission's approval prior to rebalancing.

5.8 TARGET INVESTORS

The Fund is aimed at investors who are interested in the steady stream of income offer by Sovereign, Supranational & Corporate Bond instruments while ensuring the preservation of their investment with a significant focus on high net worth individuals and institutional investors. They include:

1. Investors with low risk appetite and who do not want any exposure to equities, and are concerned with capital preservation
2. Investors who wish to reduce concentration risk by diversifying their investments, and
3. Investors who require liquidity
4. Investors who wish to benefit from attractive returns earned by the pooling together of funds to obtain better negotiating power due to scale.

The Fund welcomes participation from investors, both foreign and non-resident Nigerian, individual, and institutional investors. The Fund Manager will support non-resident investors to facilitate the remittance of the net proceeds arising from a foreign currency investment in the Fund at the point of divestment, but this will be done outside of the fund.

5.9 TAX INFORMATION

The Fund is structured to take full advantage of tax incentives granted by the Federal Government to unit trusts in order to allow investors maximize their after-tax returns on investment. Further to the "exemption from payment of tax" status accorded to dividend distribution by Unit Trusts by virtue of section 19(1)(f) of CITA, no taxes shall be or become payable by Unit Holders on income accruing to them from the Fund. However, the Fund Manager cannot guarantee continued impact of tax advantage on investors' after-tax returns in subsequent years since tax legislations are subject to changes.

5. THE FUND

5.10 INVESTMENT INCENTIVES

The Fund offers an opportunity for investors to achieve competitive returns while minimizing risk from a diversified portfolio of investments which may not otherwise be available to individual investors. It provides diversification to an investor's existing investment portfolio. In addition, investment in money market securities provides a more regular and predictable income stream which may not be available in other investments.

The Fund is structured to take full advantage of tax incentives granted by the Federal Government to unit trusts in order to allow investors maximize their after-tax returns on investment, no taxes shall be or become payable by Unit Holders on income accruing to them from the Fund. However, the Fund Manager cannot guarantee continued impact of tax advantage on investors" after-tax returns in subsequent years since tax legislations are subject to changes. Withholding Tax may apply on income distribution to client.

The Fund offers an opportunity to subscribe for Units on behalf of and in the name of minors. Also, with the pooling of funds, the Fund presents the advantage of enhanced bargaining powers in the financial market such as minimised transaction costs.

The fund also has the unique benefit of Liquidity since the Fund Manager is always available to redeem Units of the Fund, within the rules stated in the Fund's Trust Deed, Unitholders can redeem their Units at a processing time of 5 business days.

Lastly, Unit holdings in the Fund may be used as collateral for obtaining credit facilities from various financial institutions.

5.11 INVESTMENT RESTRICTIONS

The Fund shall invest strictly in accordance with the ISA, SEC Rules and other applicable laws as stated in the Trust Deed and as approved by the Commission. In addition, the Fund Manager shall take investment decisions within the prescriptions of the investment Framework of the Fund as approved by the Investment Committee in a bid to achieve the Fund's objective. The following restrictions will, however, apply:

- Investments shall be made for trading purposes only and shall not be intended for the purpose of exercising control over the management or operating policies of issuers of securities held.
- The Fund will not purchase securities on margin or engage in short sales of securities;
- The Fund Manager shall not invest more than 10% of the Fund's total assets in any single investment;
- The Fund shall not invest in any in-house securities of the Manager;
- No part of the Fund shall be invested in any units or securities of another collective investment scheme being managed by the Fund Manager; and
- The Fund Manager shall not invest in any securities that are not transferable..

5.12 SUBSCRIPTION TO THE FUND

The total units of Fund to be issued shall be 10,000 units of $100.00 each during the offer, subject to an initial minimum subscription of 10 Units and multiples of 1 Unit.

As an open-ended Fund, the entire oversubscribed portion shall be absorbed. The Fund Manager shall also create more units of the Fund from time to time as it deems fit, subject to the registration of the Units with the Commission.

5. THE FUND

Following the Offer, the Fund Manager shall issue new units for cash at the Offer Price (as determined, in accordance with Schedule VI of SEC Rules) on a valuation date following the day on which cleared funds are received.

Subsequent to the Offer, units of the Fund can be subscribed:

- From PAC Asset Management Limited (PACAM) Head Office as well as other approved channels and in such manner as the Fund Manager may from time to time advice. Completed Forms should be returned to PACAM Head Office as provided above along with a bank draft/cheque for the amount being invested.
- By downloading a Purchase Order Form from the PAC Asset Management Limited www.pacassetmanagement.com. The downloaded and duly completed form and bank draft/cheque should be sent to PACAM Head Office as provided above. Payment for units of the Fund by existing PACAM customers can also be made by wire transfer, Internet banking facilities and ATM as stated on the Subscription Form.

5.13 Fund Statement

Every Unitholder shall be entitled to receive from the Fund Manager, in electronic form, a Fund Statement for the number of units purchased by such Unitholder. The Fund Statement shall be conclusive evidence of the number of units held.

5.14 Valuation

The valuation of the Units shall be done at the close of each Business Day or such other period which the Fund Manager may advise from time to time, based on the unit price of $100.00. The NAV of the Fund shall be determined on the basis of amortised cost method or as prescribed by the Commission from time to time. The Fund Manager will advise on the prices of the Fund after the valuation.

5.15 Redemption And Transfer

Unitholders shall be entitled to redeem all or part of the Units held by them at the Price on any Business Day after receipt of Fund Statement, upon a request to the Fund Manager and by lodging the Redemption Documents with the Fund Manager, subject to minimum holding period of 6 months.

Every Unitholder shall be entitled to transfer the Units or any of the Units held by him through the Manager in accordance with the provisions of the Trust Deed. The Manager will not transfer or redeem Units without the production of a Fund Statement relating to such Units, which must be surrendered before any transfer or redemption whether for the whole or any part thereof can be registered. Units purchased on behalf of an individual under the age of 18 years may be redeemed or transferred by the signatory or by the individual upon attaining the age of 18 years provided that such individual produces a Fund Statement and a valid international passport. Detailed transfer instructions are provided in the Trust Deed.

Units may be redeemed on any Business Day at the Bid Price per Unit, provided redemption notices are received at the offices of the Fund Manager before 5.00 P.M. on the Valuation Day. Notices received after 5.00 P.M. shall be treated on the following Business Day. Redemption price shall be as at the date of treatment. Unitholders are required to maintain a minimum balance of 5 Units except in event of total redemption of holdings

5.16 Minimum Holding Period

The minimum holding period in the Fund shall be 6 months. However, the Fund Manager is aware that investors might have need for their monies within the minimum holding period and as such would allow redemption during the minimum holding period subject to a 10% charge positive returns.

The proceeds of the redemption shall be paid into the designated account provided by the Unit holder on the subscription form. However indemnity would be required from any unit holder who wishes the Fund Manager to credit the proceeds of the investment to another designated or third party account other than the account indicated on the subscription form or any other circumstance that the Fund Manager determines to warrant such.

5.17 Dividend Distribution

Dividend will be paid from the income earned to Unit holders annually. Unit holders are required to specify on their subscription form the payment option for dividend distribution. Dividends can either be:

- Reinvested into the Fund and additional Units allocated to Unit holders, or,
- Credited into the Unit holders' bank accounts via electronic means as specified in the subscription forms.

Dividend shall be distributed within 7 working days after the SEC's approval of the Fund's financial results for the financial year.

5.18 MEETING OF UNIT HOLDERS AND VOTING RIGHTS

The Manager shall convene an Annual General Meeting of unit holders, with the consent of the Trustees, at the end of each financial year to consider the accounts and all matters affecting the Fund as well as other general meetings as the Manager deems necessary. Each unit of the Fund carries a right of one vote in all matters requiring the decision of the unitholders. The unit confers on the unitholder exclusive participation in the returns on the assets of the Fund and a right to receive notices and vote at any General Meeting of the Fund. Withholding Tax may apply on income distribution to subscribers.

5.19 CLOSURE OF THE REGISTER OF UNIT HOLDERS

The register of Unit Holders will be closed for a maximum of 30 days in a year. Within the period of such closure, no disposal or sale will be in the register, (wherein unitholders will not be able to redeem their unit holdings or new subscriptions made). The Unit Holders will be given at least two weeks' notice of such closure by publication in at least two national dailies.

5.20 REPORT OF THE FUND

Copies of the audited annual reports of the Fund will be mailed to all Unit Holders at their registered addresses within three months following the financial year end of the Fund. The Fund's fiscal year ends on December 31st of each year.

5.21 LIQUIDATION OF THE FUND

The Fund shall so subsist for the period the Trust exists in accordance with the Trust deed as approved by SEC and shall so subsist except on the occurrence of any of the following events:

(a) If the Fund Manager believes that the investment objective of the Fund is no longer achievable.

(b) If six months after the date on which the Offer opened for subscription the value of the Fund shall be less than the minimum prescribed by SEC, the Fund Manager may with the consent of the Trustee, (which shall not be unreasonably withheld), terminate the Trust on a date to be agreed between the Trustee and the Manager subject to the approval of the Commission.

(c) If any law is passed or regulations or decision of a court of competent jurisdiction or government policy is made which in the judgment of the Fund Manager and/or the Trustee renders it illegal or impractical to continue the Fund.

(d) If the Commission revokes the authorisation of the Fund in accordance with the provisions of section 163 of the ISA.

(e) If at any meeting held in accordance with the provisions of the Trust Deed, it should be resolved by Special Resolution to determine the Trust on a date specified in such Special Resolution (being a date not earlier than three months after the date of the Resolution) the Trust shall accordingly be determined and this Deed shall cease to be of effect.

5.22 FEES, CHARGES AND EXPENSES OF THE FUND

The following fees and expenses shall be met from the assets/income accruing to the Fund.

1. The Trustees shall be paid quarterly in arrears a fee equal to 0.1% per annum of the Net Asset Value of the Fund.
2. The fee due to the Fund Manager, calculated and payable quarterly in arrears equal to 1% per annum of the Net Asset Value of the Fund exclusive of Value Added Tax.
3. The Custodian shall be paid quarterly in arrears a fee equal 0.1% per annum of the Net Asset Value of the Fund, payable quarterly.
4. There is an existing relationship with the Registrar, hence Registrar fees not applicable for this fund.

5.23 RISK FACTORS

The Fund Manager will exercise all necessary care, diligence and prudence in investing the monies raised in the Fund and no assurance can be given that the Fund's objectives will be achieved. Therefore the Units of the Fund being held are subject to the following inherent risk factors:

Market/Interest Rate Risk: Interest rate risk is the risk that an unexpected change in interest rate will negatively affect the value of an investment. The value of the Fund's portfolio may be affected by market risks that are outside its control, including volatility in interest rates.

Inflation Risk: This refers to the risk of loss of purchasing power due to increase in costs over time due to rising prices. The interest rate on money market instrument is typically influenced by monetary policies.

NAV Risk: Depending on its exposure to such securities, the NAV of Units issued under this Fund may change depending on various factors and forces affecting the money markets. Moreover, there is no guarantee that the market price of the Fund's Units will fully reflect the underlying asset value of the Fund.

Credit Rating Risk: The value of a security may decline because of adverse events or circumstances that directly relate to conditions at the issuer or any entity providing it credit or liquidity support.

Regulatory Risk: Changes in government regulations may adversely affect the value of a security. An insufficiently regulated industry or market might also permit inappropriate practices that adversely affect an investment.

6. FINANCIAL FORECASTS

LETTER FROM THE REPORTING ACCOUNTANTS

The following is a copy of the letter on the Financial Forecast by Alatta Nzewi Oyeka & Co. (Chartered Accountants), the Reporting Accountants to the Offer;

Alatta Nzewi Oyeka&Co
CHARTERED ACCOUNTANTS

In affiliation with
Silver Levene LLP

1, Oyediran Street,
Off Bode Thomas Street, Surulere, Lagos.
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December 5, 2018

The Directors,
PAC Asset Management Limited,
8A, Elsie Femi-Pearse Street,
Victoria Island ,
Lagos.

And

The Directors,
Pan African Capital Plc,
84, Elsie Femi-Pearse Street,
Victoria Island,
Lagos.

Gentlemen,

We have examined the accompanying profit forecast of PACAM EUROBOND FUND ('the Fund') for the five years ending December 31, 2023 in accordance with the Nigeria Standards on Assurance Engagements applicable to the examination of prospective financial information. The Directors of the Company are solely responsible for the forecast including the set out assumptions on which it is based.

In our opinion, the profit forecast has been properly compiled on the basis stated and the basis is consistent with the accounting policies of the Fund.

Actual results are likely to be different from the forecast since anticipated events frequently do not occur as expected and the variation may be material.

Further, we emphasize that the forecast information is not intended to, and does not provide all the information and disclosures necessary to give a fair presentation of the results of the operations of the Fund in accordance with International Financial Reporting Standards.

We have no responsibility to up-date this report and circumstances occurring after the date of this report.

Yours faithfully,

Ralph Okoroha FCA, FRC/2013/ICAN/00000002633
Alatta Nzewi Oyeka & Co.
Chartered Accountants
Lagos, Nigeria

1113215

1

Partners: Ndubuisi N. Alatta, Wilfred A. Nzewi, Nnamdi C. Oyeka, Ibe Onwurah, Godwin C. Anyadiegwu, Ralph U. Okoroha
Offices in: Port-Harcourt, Abuja, Nnewi

IGAL
International Grouping of Accountants and Lawyers

6. FINANCIAL FORECAST

FORECAST STATEMENT OF COMPREHENSIVE INCOME FOR YEAR ENDED 31ST DECEMBER

	2019 $	2020 $	2021 $	2022 $
Income				
Money Market Instruments/cash	606	640	786	965
Sovereign, Supranational & Corporate Bond	86,412	91,200	111,945	137,445
Total Income	**87,018**	**91,840**	**112,731**	**138,409**
Operating Expenses				
Management fee	12,128	12,800	15,712	19,290
Other operating expenses	7,738	8,714	9,719	10,551
Issue Costs	29,764	-	-	-
	49,630	**21,514**	**25,430**	**29,841**
Net Income/(Loss) before taxation	**37,388**	**70,326**	**87,301**	**108,568**
Taxation	-	-	-	-
Net Income/(Loss) after taxation	**37,388**	**70,326**	**87,301**	**108,568**
Distribution to Unit Holders	18,694	35,163	43,650	54,284
Undistributed Income	18,694	35,163	43,650	54,284
Operating Expenses/NAV%	5.02	1.64	1.57	1.50
Fund Manager Fee/NAV	1.23	0.97	0.97	0.97

6. FINANCIAL FORECAST

FORECAST STATEMENT OF FINANCIAL POSITION AS AT 31ST DECEMBER

	2019 $	2020 $	2021 $	2022 $
Current Assets				
Money Market Instruments/cash	48,512	64,000	78,558	96,452
Sovereign, Supranational & Corporate Bond	921,724	1,216,001	1,492,606	1,832,595
Cash & Equivalents	21,940	38,499	47,699	58,807
	992,177	**1,318,500**	**1,618,864**	**1,987,855**
Current liabilities				
Other Creditors	3,246	3,335	4,049	4,523
	3,246	**3,335**	**4,049**	**4,523**
Net Assets	**988,930**	**1,315,164**	**1,614,815**	**1,983,332**
Financed by				
Member's Capital	970,236	1,261,307	1,517,307	1,831,540
Revenue Reserve	18,694	53,857	97,508	151,792
Unitholders' Funds	**988,930**	**1,315,164**	**1,614,815**	**1,983,332**

6. FINANCIAL FORECAST

FORECAST STATEMENT OF CASH FLOWS FOR YEAR ENDED 31ST DECEMBER

	2019	2020	2021	2022
	$	$	$	$
Cash flows from operating activities				
Net income before distribution	39,202	70,511	87,528	108,847
Operating assets brought forward	-	971,925	1,283,103	1,574,979
Changes in operating assets/liabilities	3,249	90	715	475
Cash flow from operating activities	**42,451**	**1,042,526**	**1,371,345**	**1,684,301**
Taxation	-	-	-	-
Net cash flow from operating activities	**42,451**	**1,042,526**	**1,371,345**	**1,684,301**
Cash flows from investing activities				
	-	-	-	-
Investments in Sovereign, Supranational & Corporate Bonds	(923,328)	(1,218,948)	(1,496,230)	(1,837,052)
Investments in Money Market Instruments	(48,596)	(64,155)	(78,749)	(96,687)
Net cash flow from investing activities	**(971,925)**	**(1,283,103)**	**(1,574,979)**	**(1,933,739)**
Cash flow from financing activities				
Net proceeds from Issue	971,925	291,577	256,621	314,996
Distribution to Unit holders	(19,601)	(35,255)	(43,764)	(54,423)
Net cash flow from/(to) financing activities	**952,323**	**256,322**	**212,857**	**260,572**
Net increase in cash and cash equivalents	22,850	15,745	9,223	11,135
Opening cash and cash equivalents	-	22,850	38,595	47,818
closing Cash and cash equivalents	**22,850**	**38,595**	**47,818**	**58,953**

6. FINANCIAL FORECAST

BASIS:
The forecast financial statements have been prepared under the historical cost convention and in accordance with the Fund's accounting policies.

Asset Class	Allocation Range	Target Weighting	Return Profile
	%	%	%
Sovereign, Supranational & Corporate Bond	70 – 100	95	7.5
Money Market Instruments/cash	0 – 30	5	1.0
Other Money market instruments	0 – 5	0	0.0

ASSUMPTIONS:

A) Macro-Economic Indicators**:**

- The official exchange rate for the Fund's reporting currency (the Naira) is assumed to be stable at an average of N305/US$1 for the forecast period:

B) The total Fund size of $1 million will be raised and invested in May, 2019.

C) The Fund Manager projects full subscription of total units offered to raise the required $1,000,000. The amount raised (net of issue costs) will be allocated to the various asset classes according to the following schedule

D) The Fund expects to commence operations in May, 2019.

E) Additional units of the Fund will be subscribed in relevant years as follows:

- 30% of Opening Members' Capital in 2020
- 20% of Opening Members' Capital in 2021
- 20% of Opening Members' Capital in 2022
- 20% of Opening Members' Capital in 2023.

F) The Fund will distribute 50-100% of its annual Net Income as dividends to unitholders

G) Income from Sovereign, Supranational and Corporate Bonds is estimated at 7% p.a.

H) Annual yield from Money Market Instruments is estimated at 1% p.a., there is no expected return on cash

I) 85-100% of the net available funds at the beginning of the year will be invested in Sovereign, Supranational and Corporate Instruments with yields of 7.5% p.a.

J) The Fund Manager will earn management fees of 1% per annum on NAV of the Fund. This fee will accrue to the Fund Manager on quarterly NAV.

K) Operating Expenses will average 1.54% of Closing NAV in 2020 to 2023, but is estimated at 5.03% in 2019 due to the impact of issue costs.

L) The tax is nil throughout the forecast period as interest income earned on Bonds is a franked investment income.

M) Offer expenses including Statutory Fees, Professional Fees & contingency are estimated at $28,240.28 or 2.82% of the offer proceeds.

N) The Fund will bear all costs incidental to acquiring, valuing and disposing of investments.

O) Year ended 31 December 2019 covers a 8 month period.

7. INFORMATION ON THE FUND MANAGER, TRUSTEES

7.1 Profile of Fund Manager

PAC Asset Management Limited (PAC Asset) is an integrated Asset Management Firm incorporated in 2011 and licensed by the Securities & Exchange Commission (SEC) in 2012 to conduct business as Funds/Portfolio Manager. We are positioned to provide you with innovative investment management services. Our mission is to deliver diversified investment opportunities from different sectors of the economy ranging across Asset classes such as Equities, Money Market/Fixed Income, Real Estate and Alternative Investment. PAC Asset is a subsidiary of PAC Capital Limited, a registered capital market operator that provides an array of financial services in the areas of Investment Banking, Issuing House, and Specialised Funding Services to corporate and institutional clients.

PAC Asset business focuses on providing specialist investment avenues for clients. The company is positioned to successfully manage its clients" funds through its tailored in-house pooled private funds, structured close end funds, SEC registered public mutual funds, and standalone portfolio funds. Our services cuts across business areas and various clients including, High Net worth Individuals, Insurance companies, Endowment funds, Family and Trust Funds, Educational Centers, Charity Organisations, Religious Houses, Company Cooperatives & Staff Schemes, investment companies of Local, State and Federal Government.

Board of Directors of the Fund Manager

Chris Oshiafi – Chairman

Sina Alimi – Director

Eric Okoruwa - Director

Bamidele Ige – Managing Director

7.2 THE TRUSTEES

Profile of Trustees

CSL Trustees Limited (CSLT), a member of the First City Group, is a Limited Liability Company which was incorporated in 2010 and licensed by the Securities and Exchange Commission (SEC) in 2012 to carry on the business of Trustee Services. Our mission is to be the leading Trustee Services firm in the country, by carving a niche as the best industry service provider and creating a stimulating and rewarding environment for our staff while maximizing the value of our shareholders' investment.

CSLT has a robust client base and has acquired exposure in the various sectors of the economy cutting across oil & gas, manufacturing, retail outlets and real estate.

Board of Directors of Trustee
Ladi Balogun – Chairman
Yemisi Edun – Director
Bukola Smith – Director
Gboyega Balogun – Director
Samuel Adesanmi – Managing Director

8. STATUTORY AND GENERAL INFORMATION

8.1 INDEBTEDNESS

As at the date of this Prospectus, the Fund Manager has no outstanding debentures, mortgages, loans, charges or similar indebtedness, except in the ordinary course of business.

8.2 CLAIMS AND LITIGATION

As at the date of this Prospectus, the Fund Manager has no pending claims or litigation that is likely to have material adverse effect on the Fund.

8.3 COSTS AND EXPENSES

The costs, charges and expenses of and incidental to the Offer including fees payable to the Securities and Exchange Commission, professional parties' fees, brokerage commission, printing and distribution expenses are estimated at $28,224.28 or 2.82% of the gross Offer proceeds and are payable by the Fund and deductible from the monies raised by the Fund.

8.4 RELATIONSHIP BETWEEN THE ISSUER AND THE PROFESSIONAL PARTIES

PAC Asset Management Limited and PAC Capital Limited are under common ownership of PanAfrican Capital Holdings Limited, hence are related parties.

PAC Asset Management Limited and PAC Registrars Limited are under common ownership of PanAfrican Capital Holdings Limited, hence are related parties. Other than as disclosed, the Issuer does not have any other relationship with any of the other professional parties.

8.5 MATERIAL CONTRACTS

In connection with the establishment and issuance of Units in the Eurobond Fund, PAC Asset Management Limited and/or the Trustee have entered into the following contract, which may be material to the offer:

a) A Trust deed dated [XXXX] between PAC Asset Management Limited and CSL Trustees constituting the PACAM Eurobond Fund and Units therein issued or to be issued by the Issuing House.
b) A Vending Agreement dated [XXXX] under the terms of which PAC Capital Limited agreed on behalf of PAC Asset Management Limited to offer for subscription 10,000 units each at $100 per Unit in the PACAM Eurobond Fund.
c) A Custody Agreement, dated, [XXXX] between PAC Asset Management Limited, CSL Trustees and United Bank for Africa Plc (Global Investor Services Division) with respect to the PACAM Eurobond Fund and Units therein issued or to be issued by the Issuing House.

8. STATUTORY AND GENERAL INFORMATION

8.6 CONSENTS

The following have given and not withdrawn their written consents to the issue of this Prospectus with their names and reports (where applicable) included in the form and context in which they appear:

a.	The Fund Manager	PAC Asset Management Limited
b.	Directors of the Manager	Chris Oshiafi Sina Alimi Eric Okoruwa Bamidele Ige
c.	Company Secretary	Oladiti Abiola
d.	Issuing House	PAC Capital Limited
e.	The Trustees to the Fund	CSL Trustees Limited
f.	Solicitors to the Fund	Hermon Legal Practioners
g.	Reporting Accountants	Alatta Nzewi Oyeka & Co.
h.	Registrar	PAC Registrars Limited
i.	Custodian	United Bank for Africa Plc (Global Custodian Services Division)
j.	Receiving Banker	Sterling Bank Plc

8.7 DOCUMENTS FOR INSPECTION

The following documents are available for inspection at the office of PAC Capital Limited, 8A Elsie Femi Pearse Street, Victoria Island, Lagos, during normal business hours (except public holidays) from 8.00 am to 5.00 pm from March 28, 2019 to April 25, 2019.

1. The Certificate of Incorporation of PAC Asset Management Limited
2. The Form CAC 2A (Return of Allotment Post Incorporation) of PAC Asset Management Limited
3. The Form CAC 7 (Particulars of Directors) of PAC Asset Management Limited
4. The Memorandum & Articles of Association of PAC Asset Management Limited
5. The Certificate of Incorporation of the Trustees
6. The Memorandum & Articles of Association of the Trustees
7. The Audited Accounts of PAC Asset Management Limited for each of the years ended April 30th, 2015 - 2017
8. The Reporting Accountants' Report on the financial forecast of the Fund for the four years ending 31 December, 2019, 2020, 2021 and 2022
9. The Resolution of the Board of Directors of PAC Asset Management Limited dated July 12, 2018 authorising the creation of the Fund and the issuance of 10,000 Units of the Fund
10. The duly executed Prospectus issued in respect of the Offer
11. The letter of authorisation of the Fund and registration of the Units by the SEC
12. The Written Consents referred to above
13. The schedule of claims and litigation involving the Fund Manager, and the Solicitors opinion
14. Material Contracts referred to above

15. The Vending agreement between PAC Asset Management Limited and the Financial Adviser –PAC Capital Limited dated March 20, 2019
16. The Trust Deed between PAC Asset Management Limited and CSL Trustees dated March 20, 2019
17. The Custodian Agreement between PAC Asset Management Limited, CSL Trustees, and United Bank for Africa (Global Investors Services Division) dated March 20, 2019

9. PROCEDURE FOR APPLICATION AND ALLOTMENT

Application

1. The general investing public is hereby invited to apply for units of the Fund through any of the Receiving Agents listed on page 28.

2. Applications for the Units must be made in accordance with the instructions set out at the back of the application form. Care must be taken to follow these instructions, as applications, which do not comply, will be rejected.

3. The Application List for the Units now being offered will be open to each prospective investor at 8am on March 28, 2019 and close at 5.00pm on April 25, 2019. Applications must be for a minimum of 5,000 Units and in amounts not less than 100 Units thereafter. The number of Units for which an application is made and the value of the cheque or bank draft attached should be entered in the boxes provided.

4. Applicants should sign the declaration and write his/her full names, address and daytime telephone number(s) in the appropriate sections. A corporate applicant should affix its seal and state its Incorporation Number or in the case of a corporate foreign subscriber its appropriate identification number in the jurisdiction in which it was constituted. Where the application is made on behalf of a child, the full names of the applicant and the child, and the date of birth of the child should be provided.

5. Each applicant should forward together with the cheque or bank draft for the full amount of the purchase price to any of the receiving agents or PACAM offices. The cheque or draft must be drawn on a bank in the same town or city in which the Receiving Bank is located and crossed **"PACAM EUROBOND FUND"** with the name, address and daytime phone number of the applicant written on the back. All bank commissions and transfer charges must be prepaid by the applicants. All cheques and drafts will be presented upon receipt and all applications in respect of which cheques are returned unpaid will be rejected through the post at the applicant's risk.

6. Applications above ₦10 million should be transferred via RTGS into the Issue Proceeds Account as detailed below:

   Bank Name: Sterling Bank Plc
   Account Name: PACAM Eurobond Fund- Issue Proceeds Account
   Account Number: **36145519**

9. PROCEDURE FOR APPLICATION AND ALLOTMENT (CONT'D)

1. Allotment

The Issuing House and the Directors of PAC Asset Management Limited (the Fund Manager) reserve the right to accept or reject any application in whole or in part. All irregular or suspected multiple applications will be rejected. In the event of an over subscription, additional units of the Fund will be allotted subject to the Commission's approval.

2. Application Monies

All application monies will be retained in separate interest yielding bank accounts by the Receiving Bankers pending allotment. If any application is not accepted, or is accepted for fewer Units than the quantity applied for, a cheque for the full amount or the balance of the amount paid (as the case may be) will be returned by post within one week of allotment. Electronic Fund Statements would be sent by post not later than 2 weeks from the date of allotment.

10. RECEIVING AGENTS

Completed Application Forms for which cash or bank drafts/cheques for the full amount payable may be submitted to any of the following Receiving Agents duly registered as market operators by SEC, to whom brokerage will be paid at the rate of 0.5% of the amount of units allotted in respect of applications bearing their stamps.

Evidence of lodgement of funds at any of the Receiving Agents listed below, in the absence of corresponding evidence of receipt by the Issuing House, cannot give rise to a liability on the part of the Issuing House under any circumstances.

BANKS

Access Bank Nigeria Plc	First City Monument Bank Limited	Sterling Bank Plc
Diamond Bank Nigeria Plc	Guaranty Trust Bank Plc	Polaris Bank Limited
Ecobank Nigeria Plc	Keystone Bank Limited	Union Bank of Nigeria Plc
Fidelity Bank Plc	Standard Chartered Bank Limited	United Bank for Africa Plc
First Bank of Nigeria Limited	Stanbic IBTC Bank Limited	Unity Bank Plc
		Wema Bank Plc
		Zenith Bank Plc

STOCKBROKERS AND OTHERS

Adonai Stockbrokers Ltd	GTI Securities Ltd	Resort Securities & Trusts Ltd
Anchoria Investment & Securities Ltd	Heartbeat Investments Limited	Rostrum Investment & Securities Ltd
APT Securities & Funds Ltd	Hedge Securities & Investment Ltd	Royal Crest Finance Ltd
Atlas Portfolio Ltd	Stanbic IBTC Asset Management Ltd	Santrust Securities Ltd
Belfry Investment & Securities Limited	ICMG Securities Limited	Security Swaps Ltd
Best Link Investment Ltd	ICON Stockbrokers Ltd	Shalom Investment & Securities Ltd
Best Worth Assets & Trust Ltd	International Standard Sec. Ltd	Shelong Investment Ltd
Calyx Securities Ltd	Integrated Trust & Investments Ltd	Sigma Securities Ltd
Camry Securities Ltd	Kapital Care Trust & Securities Ltd	Signet Investments & Securities Limited
Capital Asset Ltd	Kinley Securities Ltd	SMADAC Securities Ltd
Capital Bancorp Plc	Kundila Finance Services Ltd	Solid Rock Securities & Investment Ltd
Capital Express Securities Ltd	Lambeth Capital Ltd	Spring Trust & Securities Ltd
Capital Trust Brokers Ltd	LB Securities Ltd	Springboard Trust & Investment Ltd
Cash Craft Securities Ltd	Lead Capital Plc	Tiddo Securities Ltd
Centre-point Investment Ltd	Magnartis Finance & Inv Ltd	Tomil Trust Ltd
Century Securities Ltd	Marimpex Finance & Investment Ltd	Topmost Securities Ltd
City-Code Trust & Investment Company	Maxifund Investments & Securities Ltd	Tower Assets Management Ltd
Clearview Investment Company Ltd	Mayfield Investment Ltd	Traders Trust & Investment Co. Ltd
Crossworld Securities Ltd	MBC Securities Ltd	Trans Africa Financial Services Ltd
CSL Stockbrokers Ltd	MBL Financial Services Ltd	Trust Yield Securities Ltd
De-Lords Securities Ltd	Mega Equities Ltd	Trusthouse Investments Ltd
Denham Management Ltd	Meristem Securities Ltd	TRW Stockbrokers Ltd
Dependable Securities Ltd	Midas Stockbrokers Ltd	UNEX Capital Ltd
Dynamic Portfolio Ltd	Mission Securities Ltd	Union Capital Markets Ltd
Eurocomm Securities Ltd	Molten Trust Ltd	Valmon Securities Ltd
Excel Securities Ltd	Mountain Investment & Securities Ltd	Valueline Securities & Investment Ltd
Express Portfolio Services Ltd	Newdevco Investment & Securities Co Ltd	Vision Trust & Investment Ltd
Falcon Securities Ltd	Nigerian International Securities Ltd	Vetiva Capital Management Ltd
Fidelity Finance Company Ltd	Nigerian Stockbrokers Ltd	Wizetrade Capital Asset & Mgt Ltd
Finmal Finance Services Ltd	Options Securities Ltd	Yobe Investment Securities Ltd
First Stockbrokers Ltd	PAC Securities Limited	Professional Stockbrokers Ltd
FutureView Securities Ltd	Perfecta Investment Trust Ltd	PSI Securities Ltd
Gidauniya Investment & Securities Ltd	Pilot Securities Ltd	Pyramid Securities Ltd
Global Assets Management (Nig) Ltd	Pinefields Investment Services Ltd	Quantum Securities Ltd
Golden Securities Ltd	Company Ltd	
	Planet Capital Limited	
	Regency Assets Management Ltd	

11. APPLICATION FORM

APPLICATION FORM

PACAM EUROBOND FUND

RC 695281

OFFER FOR SUBSCRIPTION OF 10,000 UNITS OF $100.00 EACH At Par

Please complete all relevant sections of the Application Form USING BLOCK LETTERS

NUMBER OF UNITS APPLIED FOR: (MINIMUM OF 10 AND IN MULTIPLES OF 1 THEREAFTER)	

PAYMENT DETAILS:

BANK:	CHEQUE/DRAFT NO:	AMOUNT (N)

NAME OF APPLICANT:

ADDRESS:

EMAIL ADDRESS:

BANK ACCOUNT NUMBER:

NAME AND ADDRESS OF BANK:

CONTACT TELEPHONE NUMBERS:

MOBILE:	OTHERS:

NEXT OF KIN:

NAME	RELATIONSHIP

OPTION OF DIVIDEND DITSRIBUTION:

BANK TRANSFER:	OR	REINVEST :

DECLARATION

- ☐ I /We am / are 18 years of age and above
- ☐ I/We confirm that I/we have read and understood the Prospectus dated March 20, 2019 to which this Application Form is attached.
- ☐ I/We attach the amount payable in full on application for the number of shares that I/we wish to subscribe to the Offer of PACAM Eurobond Fund at $100.00 per unit.
- ☐ I/We authorise you to send an allotment certificate and/or a cheque for any refund due to me/us, by registered post to the address given above and to procure registration in my/our name as the holder(s) of such number of units or such smaller number, as aforesaid.

APPLICANT'S DETAILS:

AUTHORISED SIGNATORY(IES)		CORPORATE SEAL/RC NUMBER
DESIGNATION		
SIGNATURE		

FOR REGISTRAR'S USE ONLY

UNITS APPLIED FOR	UNITS ALLOTED	AMOUNT PAID(₦)	VALUE OF UNITS ALLOTED(₦)	AMOUNT TO BE RETURN

ISSUING HOUSE

STAMP OF RECEIVING BANK

12. INSTRUCTIONS FOR COMPLETING APPLICATION FORM

1. Application should be made only on the Application form or Photocopy or scanned copies of the Application form.

2. Applications must not be for less than the minimum number of units stated on the Application Form. Application for more than the minimum number of units must be in the multiples stated on the Application Form. The number of units for which an application is made and the amount of the cheque or bank draft attached should be entered in the boxes provided.

3. The Application form when completed should be lodged with any of the receiving agents listed on page 28. Applications must be accompanied by a cheque or bank draft made out for the full amount payable on application. The cheque or draft must be crossed **"PACAM EUROBOND FUND"** with the name, address and daytime telephone number of the applicant written on the back. In the case of electronic payments application form must be accompanied by online transfer receipt evidencing payment to the Fund. All bank commissions and transfer charges must be prepaid by the applicant. All cheques and drafts will be presented upon receipt and all applications in respect of which cheques are returned unpaid will be rejected.

4. Joint applicants must all sign the Application form.

5. An application from a group of individuals should be made in the names of those individuals. An application by a firm which is not registered should be made either in the name of the proprietor or in the names of the individual partners.

6. An application from a corporate body must bear the corporate body's seal and be completed under the hand of a duly authorized officer.

7. An application by an illiterate should bear his right thumb print on the Application Form and be witnessed by an official of PACAM or any of the receiving banks at which the application is lodged who must first have explained the meaning and effect of the application form to the illiterate in his own language. Above the thumbprint of the illiterate, the witness must record in writing that he has given this explanation to the illiterate in a language understandable to him and that the illiterate appeared to have understood same before affixing his thumb impression.

8. The applicant should not print his signature. If he is unable to sign in the normal manner he should be treated for the purpose of this Offer as an illiterate and his right thumbprint should be clearly impressed on the Application Form.

DATED _____ DAY OF _____ 2019

PACAM EUROBOND FUND

TRUST DEED

BETWEEN

PAC ASSET MANAGEMENT LIMITED
RC No. 695281

AND

CSL TRUSTEES LIMITED
RC No. 923220

THE TRUSTEE WILL BE LIABLE FOR BREACH OF ITS DUTIES WHERE IT FAILS TO CARRY OUT ITS RESPONSIBILITIES UNDER THE TRUST DEED OR REPORT BREACH OF THE TERMS OF THE TRUST DEED TO THE COMMISSION

Legal Practitioners
The Penthouse Suite
Theodolite House
306 Ikorodu Road,
Anthony, Lagos
Tel:234-81-8821-0444
Mobile: 234-802-3122 562 or 234-803-536 0725
www.hermonlaw.com

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THIS TRUST DEED is made the _____ day of _____ 2019

BETWEEN

PAC ASSET MANAGEMENT LIMITED, a company incorporated under the laws of the Federal Republic of Nigeria with **(RC: 695281)** and having its office at 8A, Elsie Femi Pearse Street, Victoria Island, Lagos (hereinafter referred to as the "**Manager**", which expression shall where the context so admits, include its successors-in-title and assigns), of the one part;

AND

CSL TRUSTEES LIMITED (RC: 923220), a company incorporated under the laws of the Federal Republic of Nigeria and having its office at 17A, Tinubu Street, Lagos (hereinafter referred to as the "**Trustee**") which expression shall where the context so admits, includes its successors-in-title and assigns), of the second part;

(The Manager and the Trustee shall be referred to collectively as the Parties and individually as the Party).

WHEREAS:

(A). The Manager is desirous of establishing a fund known as the **PACAM EUROBOND FUND ("the Fund")** targeted at high net worth individuals and institutional investors seeking exposure to US Dollar denominated instruments via a Securities & Exchange Commission registered collective investment scheme.

(B). The Manager is registered with the Securities and Exchange Commission for the purpose of providing financial advisory services and managing funds and portfolios on behalf of investors.

(C.) By its letter dated **September 11, 2018**, the Manager has appointed CSL Trustees Limited as the Trustee of the Fund and CSL Trustees Limited has agreed to act as the Trustee to the Fund for the benefit of the Unit Holders and subject to the terms and conditions set forth in this Trust Deed.

(E). The Trustee is duly registered with the Securities and Exchange Commission as a Trustee.

(F). The Trustee and the Manager are distinct and separate corporate entities and are both duly incorporated under the Companies and Allied Matters Act and neither of them is a subsidiary or holding company of the other.

(G.) It is the intention of the Parties that this Trust Deed shall be the primary document regulating the relationship between the Parties in respect of the operation of the Fund and shall supersede and replace any other prior agreement in respect of same if any.

NOW THIS DEED WITNESSETH as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

Unless the context otherwise requires, in this Deed and the Recitals and Schedules hereto, the following expressions shall have the meanings respectively assigned to them:

"Fund Expense Account"	means the designated account to be opened by the Custodian with the Bank for the purpose of paying the Charges incidental to the administration of the Fund;
"Fund Trading Account"	means the designated account to be opened by the Custodian with the Bank for the purpose of making Authorised Investments;
"Assets"	means the Fund comprising all assets, including cash for the time being held or deemed to be held upon the Trust of this Deed and all amounts for the time being standing to the credit of the Fund Trading Account, the Fund Expense Account and any other account opened by the Custodian for the purpose of the Fund;
"Auditors"	means the auditors for the time being of the Fund or if they are unable or unwilling to carry out any action requested of them pursuant to this Trust Deed, then in relation to that action such other firm of chartered accountants as may be approved or nominated by the Trustee with the approval of Securities and Exchange Commission.
"Authorised Investment"	means any investment which is authorised under applicable Nigerian law and from time to time selected by the Manager including securities specified under the Trustee Investments Act, Cap. T22 LFN, 2004 as may be amended from time to time or such other investments as the Commission may from time to time approve;
"Bank"	means any financial institution licensed as a bank by the Central Bank of Nigeria that may be appointed by the Manager with the prior written approval of the Trustee from time to time;
"Bid Price"	means the price, on the most recent Valuation Day, at which a Unit shall be bought by the Manager and shall be calculated in accordance

	with SEC stipulated valuation methods as amended from time to time;
"Business Day"	means any day (other than a Saturday or Sunday or public holiday) in Nigeria on which banks are open for clearing business;
"Cash"	means cheques, bank drafts, online cash transfers, money orders, postal orders, currency notes, coins and any other recognised form of cash or currency equivalents;
"Cash Accounts"	means the Fund Trading Account, the Fund Expense Account and such other cash accounts that may be opened by the Manager pursuant to Clause 3;
"Charges"	means any or all of the following that will be charged to the Fund Expense Account: (i) The Manager's remuneration; (ii) The Trustee's remuneration; (iii) The Registrar's remuneration; (iv) The Auditors' remuneration and related expenses; (v) Fees payable to the SEC and the Exchange; (vi) Transaction charges; and (vii) Any other charges that may be incurred by the Manager in connection with its management and administration of the Fund;
"Commission" or "SEC"	means the Securities & Exchange Commission established pursuant to the Investment & Securities Act 2007 as may be modified or amended from time to time;
"Companies and Allied Matters Act"	means the Companies and Allied Matters Act, Cap C20, LFN, 2004 as may be modified or amended from time to time;
"Conversion Date"	means the date on which the allotment proposal for the Offer is submitted to the Commission;
"Designated Accounts"	means the Fund Trading Account, the Fund Expense Account and such other designated cash accounts that may be opened by the Custodian pursuant to [Clause 3];

"Exchange"	means The Nigerian Stock Exchange;
"Fund"	means the United States Dollar denominated Bond Fund and includes the Assets for the time being vested in the Trustee under the trust created by this Deed or any deed supplemental to this Deed;
"Holdings"	means all or any of a Unit Holder's investments in the Fund;
"Initial Public Offer" or **"Offer"**	means the Offer for Subscription to the public of 10,000 Units of the Fund in accordance with [Clause 5];
"Investment and Securities Act"	means the Investment & Securities Act, No. 29 of 2007 as may be modified or amended from time to time;
"LFN"	means Laws of the Federation of Nigeria;
"Meeting"	means an Annual General Meeting or Extraordinary General Meeting of Unit Holders convened in accordance with the provisions contained in the [Second Schedule] hereto;
"Minimum Initial Investment"	means a minimum investment of 10 (Ten Units or such amount as the Manager may from time to time prescribe
"Minimum Account Balance"	means a minimum investment of 5 (Five) Units or such amount as the Manager may from time to time prescribe;
"Naira" and the sign **"₦"**	means the lawful currency of the Federal Republic of Nigeria;
"Net Asset Value"	means value of all investments and other assets of the Fund after adjustments and/or deductions in respect of all liabilities pertaining thereto, including but not limited to the remunerations of the Manager, the Trustee, the Registrar, the Custodian and the Auditor, fees payable to the Commission and the Exchange and any other charges that may be incurred by the Manager of the Fund;

"Offer Price"	means the price, arrived at on the most recent Valuation Day, at which a Unit shall be sold by the Manager and shall be calculated by the Manager in accordance with SEC stipulated valuation methods as may be amended from time to time;
"Ordinary Resolution"	means a resolution passed by a simple majority of votes cast by Unit Holders entitled to vote at a Meeting in person or by proxy;
"Redemption Notice"	means a notice issued pursuant to [Clause 9] and in the form set out in [Schedule 3];
"Register"	means the register of Unit Holders;
"Registrar"	means PAC Registrars Limited or such other registrar or registrars as may from time to time be appointed by the Manager with the prior written approval of the Trustee;
"Special Resolution"	means a resolution passed by not less than three-fourths of the votes cast by Unit Holders of the Fund that are entitled to vote in person or by proxy at a Meeting of which 21 days' notice specifying the intention to propose the resolution as a Special Resolution has been duly given;
"SEC Rules"	means the Rules and Regulations of the Securities and Exchange Commission published in June 2013 together with its amendments.
"Statement of Unit holding"	means a document or statement issued by the Manager to a Unit Holder confirming the number of Units held by a Unit Holder in the Fund;
"Trust"	means the Trust as constituted by this Deed;
"Trust Deed" or **"Deed"**	refers to the provisions of this Deed and any document supplemental hereto or executed in pursuance hereof;
"Unit"	means a Unit issued and representing one undivided share in the Fund;
"Unit Holders"	mean the persons whose names are for the time being entered in the Register of Unit Holders as holders of Units in the Fund;

"Units Outstanding"	mean all the Units of the Fund that have been sold to Unit Holders and have not been redeemed in accordance with Clause 9;
"Valuation Day"	means any day on which the value of the Fund is calculated;
"Year"	means calendar year.

1.2 **Interpretation**

- Headings in this Deed are for ease of reference only and shall not affect its construction.
- Save where the context otherwise requires in this Trust Deed, words importing the singular number shall include the plural number and vice versa and words importing one gender shall include the other.
- References to these presents and the Trust Deed include the schedules hereto.
- References to statutes or statutory instruments shall be references to those statutes or statutory instruments and any statutory modification or re-enactment thereof.
- The words "written" or "in writing" shall include printing, engraving, lithography or other means of visible reproduction.
- An expression importing a natural person shall include any company, partnership, trust, joint venture, association, corporation and other body corporate.
- Any reference in this Deed to a clause, party, or schedule is a reference to that clause of, party to, or schedule to this Deed.
- A reference to a document shall be construed as a reference to such document as may from time to time be amended, restated, supplemented, novated or otherwise modified but disregarding any amendment, restatement, supplement, novation or other modification made in breach of this Deed.

1.3 **Business Day Adjustment**

Where the day on or by which a payment is due to be made or an event due to occur is not a Business Day, that payment shall be made and that event shall occur on or by the next succeeding Business Day, unless that next succeeding Business Day falls in a different calendar month, in which case that payment shall be made or that event shall occur on or by the immediately preceding Business Day.

2. ESTABLISHMENT OF TRUST / THE TRUST DEED

2.1 Establishment of Trust

The Trustee hereby declares and agrees to hold the Deposited Property on Trust for the use and benefit of the Holders, their successors, permitted assigns and personal representatives, and subject to the terms and conditions hereinafter declared and set forth, such trust to constitute the Fund hereunder.

2.2 The Trust Deed

The provisions of this Trust Deed and of any duly executed supplemental trust deed shall be binding on the Trustee, the Manager, the Unit Holders and all persons claiming through them respectively as if such persons were parties to this Deed or such supplemental deed.

3 CONSTITUTION AND ADMINISTRATION OF THE FUND

3.1 Following the Initial Public Offer, the Fund shall be constituted from the proceeds of the issue of Units in the Fund under the Initial Public Offer.

3.2 The effective control of the Fund is vested in and shall be exercised independently by the Trustee on behalf of the Unitholders. The Manager shall make investments in line with the Investment Policy and shall apprise the Trustee, and the Investment Committee of any investment made by the Fund.

3.3 **Appointment of the Custodian**

There shall be appointed a Custodian to provide custodial services to the Fund in relation to the Assets, and on the terms and subject to the conditions contained in the Custodial Agreement to be executed between the Custodian, the Manager and the Trustee, such appointment being conditional upon the issue of the Units and taking effect upon and from the closing date.

3.4 The Manager shall procure the maintenance by the Custodian of the Cash Accounts.

3.5 The Manager shall procure that the Custodian makes payment, out of the Fund, of all expenses incurred or to be incurred from time to time in connection with the management or trusteeship of the Fund including but not limited to the fees payable to the Commission, the Exchange and Professional Advisers, and all such other reasonable expenses to be incurred by or on behalf of the Fund; PROVIDED that all the Fund's expenses including the annual management fee in any given year shall not exceed 5% of the Net Asset Value of the Fund.

3.6 All cash proceeds of the issue of Units shall be paid into the Fund Trading Account or such other designated cash account with the Custodian.

3.7 A portion of such proceeds will from time to time, as hereinafter provided for, be paid from the Fund Trading Account into the Fund Expense Account or such other designated cash

account pursuant to Clause 3.3 above to be used for the payment of charges incidental to the administration of the Fund.

3.8 The Cash Accounts shall be operated by the Custodian, PROVIDED that the Custodian shall obtain the prior consent of the Manager and Trustee to make payments, such consent not to be unreasonably withheld. The Manager shall provide the Commission and the Trustee with monthly and quarterly reports thereon as well as a quarterly valuation of the investments held by the Fund.

3.9 All investments shall be made with monies drawn from the Fund Trading Account and such investments shall be in the name of CSL Trustees Limited/PACAM Eurobond Fund.

3.10 Monies paid to the Fund shall be placed with the Fund Trading Account and shall form part of the Assets.

3.11 All stamp duties and Charges on this Deed or upon the constitution of the new Units shall be payable out of the Fund Expense Account.

3.12 The Manager shall not borrow upon the investments of the Fund nor on behalf of the Fund or the Unitholders and monies shall not be lent out of the investments of the Fund. This would not, however, prevent the Manager from making any Authorised Investment.

3.13 Notwithstanding anything to the contrary either herein or in any other document, the Manager shall be entitled to subscribe to Units of the Fund.

4. DESCRIPTION AND OBJECTIVE OF THE FUND

4.1 The Fund is an actively managed open-ended Fund that invests primarily in Sovereign, Supranational and Corporate Bonds and Money Market Instruments.

4.2 The objective of the Fund is to generate steady stream of Foreign Exchange cash flow on subscribers' investment. The Fund will invest in Sovereign Eurobond (FGN), Non-sovereign Eurobond (States & Corporate) and supranational Eurobond instruments. Investment decisions will be based on credit quality of the instruments and fundamental value of the instruments. The Fund Manager would invest funds in such a manner as to ensure long term capital appreciation, capital preservation and generate a stable stream of income and assured liquidity to investors. The Fund Manager would monitor all exposures keenly and seek preservation of the investment ahead of possibilities of high returns. In summary, the Fund Manager would always seek to maximize risk-adjusted return of the investments.

4.3 The Investment Guidelines of the Fund shall be as follows:

a. The maturity of the investment is not expected to exceed 10 years; and

b. The minimum credit rating of the investment is: BBB -

4.4 The investment of the Fund shall consist of Certificates of Deposit, Treasury bills, Commercial Papers, Bankers' Acceptances & other Money Market Instruments, Federal Government of Nigeria Bonds, State/Local Government Bonds, Government-Guaranteed and Agency Bonds, Supranational Bonds, and Corporate Bonds.

4.5 The Fund shall be invested by the Manager within the asset allocation guidelines as advised by the Investment Management Committee of the Fund, as shown below, subject to clause 2.8:

Asset Class	Asset Allocation Range	Target Weighting
		%
Sovereign, Supranational & Corporate Bond	70 - 100%	85
Money Market Instruments/Cash	0 - 30%	15
Cash	0 - 5%	0
		100

4.6 All cash and other property which ought in accordance with the provisions of this Deed to form part of the Deposited Property shall forthwith after receipt by the Manager be vested in the Trustee but kept in the possession of the Custodian, or subject to any prescribed conditions, in a nominee approved by the Commission.

4.7 Until the determination of the Fund, the Manager subject as hereinafter provided shall have the exclusive right at any time and from time to time to effect the issue of new Units.

4.8 The Manager shall not alter the investment of the Fund without the sanction of the Commission and approval of the Trustee or a Special Resolution of a Meeting of Unit Holders duly convened and held in accordance with the provisions contained in the First Schedule hereto and subject to the approval of the Commission. This is pursuant to S. 162 and S. 187 of the Investments and Securities Act 2007.

5. SALE AND ISSUE OF UNITS

5.1 The Manager shall issue 10,000 (Ten Thousand) Units of the Fund to the public at a price of US$ 100 per Unit.

5.2 The minimum investment a Unit Holder(s) may make in the Fund is in respect of 10 Units of the Fund at a price of US$100 (Hundred United States Dollars) per Unit. Thereafter, additional Units in the Fund shall be issued in multiples of 1 Unit and shall be subscribed for in those multiples.

5.3 The Units issued pursuant to the Initial Public Offer shall rank pari passu in all respects and shall represent an undivided part of the Assets.

5.4 The Units offered under the Initial Public Offer shall be payable at par in full upon application.

5.5 Any Units not subscribed for shall be held by the Manager and shall be available for purchase in accordance with [Clause 5.6] below.

5.6 Any Units not subscribed for shall be held by the Manager and shall be available for purchase in accordance with Clause 5.7 below.

5.7 Where the registered units are exhausted, the Fund Manager shall create and register additional units with the Commission, prior to issuance to the public.

5.8 A person who wants to subscribe for Units of the Fund may do so at the Offer Price and must complete and deliver to the Manager an application form in the form prescribed by the Manager.

5.9 Every application in whatever form shall be accompanied with the subscription fee, or the document of transfer of the property to be vested in the Trustee. The Manager has an absolute discretion whether to accept or reject an application for Units.

5.10 Any new Units issued by the Manager, shall rank pari passu in all respects with the Units issued pursuant to this Trust Deed and shall represent an undivided part of the Assets.

5.11 The obligation of the Manager to any Unit Holder shall be discharged on a pro rata basis in accordance with the number of Units redeemed by such Unit Holder in accordance with the provisions of [Clause 9] or any other provision of this Trust Deed.

6. FINANCIAL YEAR

The Financial Year of the Fund shall be January to December. The year-end of the Fund will be December 31st in each year

7. RIGHTS OF UNIT HOLDERS

7.1 The Unit Holders shall not have or acquire any right against the Manager or the Trustee in respect of their investments except such rights as are expressly conferred upon them by this Deed or any Deed supplemental thereto by any laws, regulations or court orders.

7.2 The Assets shall be held as a single common fund and no Unit thereof shall confer any interest or share in any particular part of the Assets.

7.3 A Unit Holder shall have the right to share in the assets of the Fund proportionate to the number of Units held by him in the Fund.

7.4 Only persons who have been duly registered as Unit Holders shall have the right to be recognized as such.

7.5 Unit holders shall be entitled upon making a demand in writing to the Manager to receive a Statement of Unit holding indicating their Unit holding and any sale or purchase of the Units held by them.

7.6 Joint Unit holders shall be entitled to only one Statement of Unit holding for Units held jointly by them, which Statement of Unit holding shall be issued in the names of the joint

Unit Holders and delivery of a Statement of Unit holding to one of the joint Unit Holders shall be sufficient delivery to all such Unit Holders.

8. PAYMENT OF REMUNERATION AND FEES

8.1 The remuneration of the Manager and all other administrative fees shall accrue on a daily basis. At the end of each month, all such sums as have accrued shall be transferred from the Fund Trading Account into the Fund Expense Account from which the relevant sums will be paid to the respective professional parties quarterly in arrears PROVIDED however that the annual management fee and other expenses, shall not exceed 5% of the Net Asset Value.

8.2 The Manager shall be entitled to an annual management fee of 1% of the Net Asset Value of the Fund. The Manager shall be entitled to an incentive fee not exceeding 20% of total returns in excess of 10% of the Fund's Net Asset Value per annum.

8.3 The Manager shall, on behalf of the Fund, pay the Trustee all sums owing to the Trustee in respect of remuneration costs which shall be 0.0325% of the Net Asset Value per annum. The Trustee's remuneration shall be payable quarterly in arrears.

8.4 The Trustee shall not incur reimbursable expenses exceeding N50,000.00 in any Year and the Trustee shall obtain the Manager's consent (such consent not to be unreasonably withheld) to incur any expense exceeding N20,000.00 at any particular point in time.

8.5 All such costs, expenses, charges or remuneration due to the Trustee shall be payable promptly. However the Trustee shall, where requested to do so, provide the Manager with invoices/receipts for all expenses incurred.

8.6 The Auditors' fees shall be due for payment at the end of the Financial Year upon the completion of the audit and shall be paid from the Fund Expense Account.

9. REDEMPTION OF UNITS

9.1 Except as provided herein, there is no restriction on Unit Holders' access to their investment proceeds by way of redemption of Units.

9.2 All redemptions of Units shall be made through the Manager or any of its agents as may be appointed from time to time.

9.3 Subject to Clause 9.4 below, the Manager shall on request, redeem against a payment out of the Fund, Units from Unit Holders at the Bid Price and where the redemptions are being made within 180 days of allotment of the Units to a Unit Holder, the Manager shall have the right to charge a redemption fee of 10% of the positive returns.

9.4 Notwithstanding anything contained in this [Clause 9], a Unit Holder shall not be entitled to redeem only part of his holding of Units if such redemption would result in his holding being reduced to less than the Minimum Account Balance. In this circumstance, the unit holder shall have an option to redeem all his investment

9.5 Unit Holders can redeem their Units in the Fund within 5 (five) Business Days of receipt by the Manager or any of its agents of the Unit Holder's Statement of Unit holding and a Redemption Notice PROVIDED that:

9.5.1 the form of Redemption Notice shall be as set out in the [Third Schedule] hereto;

9.5.2 redemption shall be effected at the Bid Price subject to [Clauses 9.3 and 9.6];

9.5.3 Unit Holders seeking to redeem only a part of their holding shall be required to maintain a minimum investment of 5 Units in the Fund, otherwise the unit holder shall redeem all.; and

9.5.4 payments in respect of each redemption shall be by electronic transfer within 5 (five) Business Days of receipt of the Unit Holders' Statements of Unit Holding and Redemption Notices.

9.6 Where only part of the Units comprised in a Statement of Unit Holding are to be redeemed, the Unit Holder shall pay to the Manager the stamp duty (if any) arising from the issue of a Statement of Unit Holding in respect of the balance and thereupon the Manager shall procure the issuance of Statement of Unit Holding to be issued free of any other charge for the balance of the Units held by such Unit Holder.

9.7 The Trustee shall ensure that the amount payable in connection with any purchase or cancellation of Units pursuant to this Clause is calculated in accordance with the provisions of the Investments and Securities Act and this Deed.

9.8 In no event shall the Trustee be bound to make any payment to the Manager or any Unit Holder except out of the Assets held by it for that purpose under the provisions of this Deed.

9.9 The Manager shall be entitled in the name and on behalf of the Unit Holder to execute an instrument of transfer in respect of any Units to be redeemed hereunder by purchase by the Manager and to endorse and sign on the appropriate Statement of Unit Holding in respect of the Units to be redeemed, such statement as may be necessary or desirable as evidence that the Unit Holder no longer has any interest in the said Units PROVIDED that in either event the Manager shall within a reasonable period thereafter furnish to the Trustee the authority under which it acted.

10. TRANSFER OF UNITS

10.1 Every Unit Holder shall be entitled to transfer the Units or any of the Units held by him upon the execution by the transferor and the transferee and the delivery to the Manager of such transfer instrument as may be prescribed by the Manager from time to time.

PROVIDED that no transfer of part of a holding of Units shall be registered where it would result in either the transferor or the transferee holding less than the Minimum Account Balance.

10.2 Units shall only be transferred in multiples of 10 (ten) or such number of Units as may for the time being generally or otherwise be prescribed in writing by the Manager with the approval of the Trustee.

10.3 Every instrument of transfer must be signed by the transferor and the transferee and subject to the provisions of [Clause 10.7], the transferor shall be deemed to remain the holder of the Units transferred until the name of the transferee is entered in the Register in respect thereof. The instrument of transfer need not be a deed.

10.4 Every instrument of transfer must be duly stamped and lodged with the Manager for transmission to the Registrar accompanied by any necessary declarations or other documents that may be required in consequence of any regulation or legislation for the time being in force and by the Statement(s) of Unit Holding relating to the Units to be transferred and or such other evidence as the Registrar may require to prove the title of the transferor or his right to transfer the Units and thereupon the Registrar shall register the transferee as holder of the Units referred to in such instrument of transfer and shall issue to such transferee a new Statement of Unit Holding representing the Units so transferred.

10.5 All instruments of transfer shall be registered and may be retained by the Manager or by the Registrar on its behalf.

10.6 A fee of such amount as the Manager and the Trustee may from time to time agree may be charged by the Manager upon any transfer of Units and the Registrar shall issue a new Statement of Unit Holding in the name of the transferee and a balance Statement of Unit Holding (if necessary) in the name of the transferor.

10.7 A receipt signed by the Unit Holder in respect of any monies payable in respect of the Units represented by any Statement of Unit Holding shall be a good discharge to the Trustee and the Manager and if several persons are registered as joint Unit Holders or in consequence of the death of a Unit Holder, are entitled so to be registered, any one of them may give an effectual receipt for any such monies.

11. FEES PAYABLE ON BEHALF OF THE FUND

The Manager shall pay or cause to be paid from the Fund Expense Account, all brokerage fees to agents on the sale or issue of Units as and when applicable.

12. TRUST OF THE ASSETS

The Assets shall be vested in the Trustee upon trust for the Unit Holders.

13. CUSTODY OF THE ASSETS

All the instruments relating to the Assets and all documents of title or value connected therewith received by the Trustee or its nominees or such agents appointed by it, shall be deposited with the Custodian and the Custodian shall be responsible for the safe custody of such part of the instruments as may be within their or their nominees' or agents' control.

14. INVESTMENT POLICY

14.1 The Manager shall identify and evaluate investment opportunities for the Fund and shall determine whether the Fund should invest. The Manager shall effect the Fund's investment and disposition of each portfolio investment in accordance with the Investment Policy in the Fifth Schedule to this Deed.

14.2 The Manager shall not alter the Investment Policy of the Fund without the sanction of the Unitholders, the Trustee and the prior approval of the Commission, and such sanction shall not be unreasonably withheld by the Trustee.

15. RIGHT TO SELECT INVESTMENTS

15.1 There shall be an Investment Committee responsible for advising the Manager on the investments to be made by the Fund.

15.2 In accordance with the provisions of the SEC Rules, the Investment Committee shall consist of not less than 3 (three) persons who shall be nominated by the Manager and whose appointment shall be subject to the approval of the Trustee. At least 1 (one) person on the Investment Committee shall be an independent member with no affiliation to either the Trustee or the Manager. The Manager shall from time to time consult with the Investment Committee on its decisions to purchase, sell, or alter any investment made by it under this Trust Deed.

15.3 Subject to Section 171 of the Investments and Securities Act, the Manager shall have the right to decide as to the purchase, selection, sale or alteration of any investments under the provisions of this Trust Deed. The consent of the Trustee must be obtained before such investments are finalized.

15.4 The Manager shall from time to time consult with the Investment Committee regarding its decisions to purchase, sell or alter any investment under this Trust Deed.

15.5 Save pursuant to an offer made jointly to all holders of units of another authorised unit trust scheme (as defined by Section 152 of the Investments and Securities Act) for the exchange of such units or the cash or other property represented thereby for Units of the Fund, neither the Trustee nor the Manager nor any affiliate of either shall as principal, sell or deal in the sale of investments to the Trustee for account of the Fund, or vest Authorized Investments in the Trustee upon the issue of Units and the Trustee and the Manager shall (without incurring any liability for failure to do so) use their best endeavours to procure that no such sale or dealing or vesting shall be made by any Directors of the Trustee or the Manager or of any affiliate PROVIDED that the restriction imposed by this Clause shall not apply to any sale or dealing or vesting in connection with the provision of the initial portfolio of investments by the Manager.

15.6 The Manager shall not undertake any dealing in or retention of any underlying securities of any company if any of its officers, affiliates or subsidiaries each have beneficial ownership of more than 0.5% of the securities of such company and together more than 5 *per cent* of the securities of that particular company PROVIDED that the Manager shall be prohibited from investing in its in-house instruments, the Trustee's instruments or any instrument issued by their associates.

15.7 The Manager, Trustee and their affiliates shall not deal as principals in the sale of underlying assets to the Trust scheme.

16. REALISATION OF INVESTMENT

Any monies accruing from investments of the Fund shall be treated as realized investments. The Manager shall have the discretion subject to the Investment Policy to reinvest any realized investment comprised in the Asset in other Authorised Investments at any time PROVIDED always that the Manager acts with diligence and prudence in exercising this discretion.

17. CHANGE IN INVESTMENTS

17.1 It shall not be necessary for either the Manager or the Trustee to effect any change in investments by reason of any appreciation in the value or the aggregate of the value of any investments in any one company or body or of any security or any depreciation in the value or the aggregate of the value of any investments causing the limits referred to in [Clause 18] to be exceeded or by reason of the said limits being exceeded as a result of either:

17.1.1 the receipt by the Trustee or its nominee of any rights, bonuses or benefits in the nature of capital;

17.1.2 any scheme or arrangement for amalgamation, reconstruction, conversion or exchange; or

17.1.3 any repayment or redemption (including in the case of debentures or debenture stock following the purchase thereof by that company or body).

PROVIDED that the entire portfolio shall be rebalanced within a reasonable period

17.2 If and so long as the said limits shall be exceeded, the Manager shall not purchase any additional investments which would result in any of the said limits being exceeded further and if at any time when any of the said limits shall be exceeded the Manager determines to sell any investments it shall before selling any other investment sell so much of the investment or investments in respect of which any of the said limits is exceeded PROVIDED however that the entire portfolio shall be rebalanced within a reasonable period.

18. INVESTMENT RESTRICTIONS

18.1 No investment shall be made which would result in either the value or the aggregate of the values of any investment in any one company or body or in any one security exceeding one-tenth or one-twentieth in the case of a single security of the value of the Fund immediately after such investment has been made.

18.2 The Manager shall be prohibited from investing in its in-house instruments, the Trustee's instruments or any instrument issued by any of the associates of the Manager or the Trustee.

19. APPOINTMENT OF REGISTRAR

19.1 The Manager has, with the consent of the Trustee, appointed the Registrar for the purposes contemplated in Clause 20 and the Fourth Schedule hereto.

19.2 Where the Manager, in consultation with the Trustee, for valid reasons, is of the opinion that a change of Registrar is desirable in the interest of the Unit Holders it shall notify the Registrar accordingly and the Registrar shall, within 30 (thirty) Business Days transfer all records, Statements of Unit Holding, documents and registers kept or maintained by it with regard to the Fund to the Manager and the Manager will thereafter take such steps as may be necessary to appoint a new Registrar for the Fund PROVIDED the Commission is duly informed and notice of such change or appointment is communicated to Unit Holders in the manner provided in Clause 40 herein within 5 (five) Business Days of the date such change or appointment takes effect.

20. REGISTRATION OF UNIT HOLDERS

20.1 A Register of Unit Holders shall be kept by the Registrar.

20.2 The Register shall contain the names of Unit Holders, the respective number of Units held, the nominal value of the Units, the date of purchase, the statement number (if issued), Unit Holders account number and any other information that may be deemed necessary by the Manager.

20.3 The Registrar shall immediately be notified in writing of any change of name or address on the part of any Unit Holder and upon the Registrar's satisfaction thereof and in compliance with all such formalities as it may require shall cause the Register to be altered or the change to be registered accordingly.

20.4 All Unit Holders shall be entitled during business hours to freely inspect the Register.

20.5 The Register shall be conclusive evidence of the persons entitled to the Units represented by the Statement of Unit Holding entered therein. Any person claiming to be interested in any Units or the dividends on them may protect his interest by serving on the Manager a notice and an affidavit of interest whereupon the Registrar shall cause to be entered on the Register the existence of such notice and shall not register, transfer or make payment or return[s] in respect of the relevant Units contrary to the terms of the notice until the expiration of 48 (forty-eight) days' notice to the claimant of the proposed transfer or payment.

20.6 A body corporate may be registered as a Unit Holder or one of joint Unit Holders.

20.7 In the event of the death of a Unit Holder only the legally appointed executors or administrators of the estate of the deceased Unit Holder (not being one of joint Unit Holders) or the surviving Unit Holder(s) of joint Unit Holders shall be recognized by the Registrar as having any title to or interest in the Units of the deceased Unit Holder.

20.8 Any person becoming legally entitled to any Units in consequence of the death or bankruptcy or dissolution or winding up of any Unit Holder or upon the order of a court or upon a declaration that a Unit Holder is a lunatic shall upon producing such evidence to

the satisfaction of the Registrar substantiating his claim and on delivering up the Statement(s) of Unit Holding of the deceased, bankrupt or lunatic Unit Holder or resolution of dissolution or winding up to the Registrar for cancellation be entitled to elect either to be registered himself or to have some other persons nominated by him registered as entitled to such Unit(s) and to have a new Statement(s) of Unit Holding issued accordingly. If the person becoming so entitled shall elect to be registered himself he shall deliver or send to the Registrar a duly signed written notice in a form to be prescribed by the Registrar stating that he elects to be so registered, or if he shall elect to have some other person nominated by him shall testify such election as if the death, bankruptcy or lunacy or the dissolution or winding up of the Unit Holder had not occurred and the notice or transfer were a transfer executed by such Unit Holder.

20.9 Any person becoming entitled to Units in consequence of the death or bankruptcy or dissolution or winding up of a Unit Holder shall, once he has provided sufficient evidence of such entitlement to the Registrar even if actual registration has not yet taken place, be entitled to receive and may give a discharge for monies payable in respect of the Units. However such person shall not be entitled to all the other rights of a Unit Holder until he shall have been registered in respect of the Units.

20.10 The number of Units held by a Unit Holder shall be registered and recorded by the Registrar as a book entry.

20.11 The Manager may, upon giving notice to the Unit Holders by advertisement in a widely circulated daily newspaper, close the Register for a period not exceeding 30 (thirty) days in each Year.

21. VOTING RIGHTS ON FUND ASSETS

21.1 All rights of voting conferred by any investments forming part of the Assets shall be exercised in such manner as the Manager may in writing direct, and the Manager may refrain at its own discretion from the exercise of any voting rights and no Unit Holder shall have any right to interfere or complain. Upon written request and at the expense of the Manager, the Trustee shall from time to time execute and deliver or cause to be executed or delivered to the Manager or their nominees such powers of attorney or proxies in such name or names as the Manager may request authorizing such attorneys and proxies to vote, consent or otherwise act in respect of all or any part of the Assets.

21.2 The Manager shall be entitled to exercise the said rights in what it considers to be the best interest of the Unit Holders. Subject to Section 168 of Investments and Securities Act, neither the Manager nor the Trustee shall be under any liability or responsibility therefore in respect of the management of the investment in question nor in respect of any vote, action or consent given or taken or not given or taken by the Manager whether in person or by proxy and neither the Trustee, the Manager, the Unit Holder or any such proxy or attorney shall incur any liability or responsibility by reason of any error of law or mistake of fact or any matter or thing done or omitted or approval voted or given or withheld by the Trustee or Manager or by the Unit Holder and the Trustee shall be under no obligation to anyone with respect to any action taken or caused to be taken or omitted by the Manager or by any such proxy or attorney.

21.3 The phrase "right of voting" or the word "vote" used in this Clause shall be deemed to include not only a vote at a meeting but any consent to or approval of any arrangement, scheme or

resolution or any alteration in or abandonment of any rights attaching to any part of the Fund's assets and the right to requisition or join in a requisition to convene any meeting or to give notice of any resolution or to circulate any statement.

21.4 The Trustee shall, without delay forward to the Manager, all notices of meetings, reports, circulars and other documents of a like nature received by it or its nominee with regard to any investment of the Fund.

22. ISSUANCE OF STATEMENT OF UNIT HOLDING

22.1 Every Unit Holder shall be issued a Statement of Unit Holding in respect of the number of Units held by him in the Fund but joint Unit Holders shall be entitled to only one Statement of Unit Holding for Units held jointly by them, which Statement of Unit Holding shall be issued in the names of the joint Unit Holders and delivery of a Statement of Unit Holding to one of several joint Unit Holders shall be sufficient delivery to all such Unit Holders.

22.2 Notwithstanding anything contained in these presents, a Unit Holder shall be entitled to waive his right to the issuance of a Statement of Unit Holding.

22.3 The Statement of Unit Holding may be duly issued in United States Dollars provided that a person shall not be registered in respect of less than 10 (ten) Units or any other number of Units as may otherwise be prescribed by the Manager.

23. FORM OF STATEMENT OF UNIT HOLDING

The Statement of Unit Holding shall specify the number of Units represented thereby and shall be in the form prescribed in the First Schedule hereof or such other form as the Trustee and Manager may agree.

24. RIGHT OF ASSIGNMENT

Every Unit Holder is entitled to assign, by way of security, all or any part of his or her investments to third parties PROVIDED that the Manager is duly informed of such assignment so that necessary documentation can be effected to reflect the change in the Unit Holder's holding in the Fund.

25. WORN-OUT, DEFACED, LOST OR DESTROYED STATEMENT OF UNIT HOLDING

25.1 If any Statement of Unit Holding becomes worn-out, mutilated, defaced or soiled in such a manner as to make identification questionable the Registrar with the approval of the Trustee may cancel such Statement of Unit Holding and issue a new Statement of Unit Holding in its place.

25.2 If any Statement of Unit Holding is lost, stolen or destroyed, then upon proof thereof to the satisfaction of the Registrar and on such indemnity (if any) as the Registrar may deem necessary, a new Statement of Unit Holding in lieu thereof may be issued under the seal of

both the Manager and the Trustee to the person entitled to such lost, stolen or destroyed Statement of Unit Holding. An entry as to the issue of the new Statement of Unit Holding and indemnity (if any) shall be made in the Register.

26. INCOME DISTRIBUTION/REINVESTMENT

26.1 Dividend distribution and re-investment options shall be at the choice of the Unit Holder.

26.2 Where the Net Income is to be distributed, distribution shall be effected within ninety (90) days after the end of each Financial Year, subject to the approval of the Unit Holders, the Manager shall effect the distribution of not less than 10% of the Net Income realized by the Fund during the preceding Financial Year.

26.3 Where in the opinion of the Manager, the Fund has realized such profits as to allow any surplus income to be distributed in the interim in addition to the distribution under clause 26.2 above, the Manager may, subject to the approval of the Trustee, and the Commission, pay to the Unit Holders such interim dividends as may appear to be justified by the profits of the Fund.

26.4 The Unit Holders shall have the option of receiving their dividends in cash or re-investing the whole or a portion thereof in additional Units of the Fund PROVIDED that such election by the Unit Holders shall have been made at the point of purchase or subscription of the Units. The Unit Holders may, however by written instruction to the Manager issued within a minimum notice period of 60 days before the date fixed for payment, change any earlier instruction or election with regard to the payment. Distribution of dividends shall be effected by the Registrar to the Fund on the payment effective date as approved by the Trustee and disclosed by the Manager.

26.5 At least once in a Financial Year, the Manager shall cause to be audited by the Auditors the accounts relating to the management of the Fund (including the account of the Manager in relation thereto and statement of remunerations in connection therewith). The accounts shall relate to the Fund's Financial Year.

26.6 There shall be attached to such account statement certified by the Auditors showing the amount and percentage of gross profits (before any deductions) made or losses incurred from each of the following types of transactions:

26.6.1 The issue of new Units;
26.6.2 The sale of repurchased Units;
26.6.3 The cancellation of Units.

26.7 Copies of the said accounts and statements shall be sent by the Manager to all Unit Holders at least once in every Financial Year but not later than six months (or such extended period not exceeding a further three months as the Commission may in exceptional circumstances allow) after the end of the period to which they relate.

26.8 A copy of the Auditor's report shall be sent by the Manager to the Commission and also published in a national newspaper within three months after the period to which the accounts relate or the Commission may from time to time specify.

27. INDEMNITIES, RIGHTS AND DISCRETION OF TRUSTEE AND MANAGER

Without prejudice to any indemnity allowed by law or elsewhere herein given to the Trustee or to the Manager, the following provisions shall apply:

27.1 The Trustee, the Manager and the Registrar shall not be responsible for the authenticity of any transfer or form of application, endorsement or other documents affecting the title to or transmission of Units or be in any way liable for any forged or unauthorized signature on or a seal affixed to such endorsement, transfer or other document or for acting on or giving effect to any such forged or unauthorized signature or seal affixed PROVIDED that they have exercised due care and diligence in examining the signature.

27.2 The Trustee, the Manager and the Registrar shall not incur liability in respect of any action or omission by them in good faith in reliance upon any notice, resolution, direction, consent, certificates, affidavit, statement, certificate of stock, plan or scheme of reorganization or other paper or document believed to be genuine and to have been passed, sealed or signed by the proper parties or their officers.

27.3 Neither the Trustee nor the Manager shall incur liability to the Unit Holders for doing or failing to do any act or thing which by reason of any provision of any present or future law or regulation made pursuant thereto or of any law, order or judgment of any Court or by action (whether of binding legal effect or not) which may be taken or made by any person or body acting with or purporting to exercise the authority of any government (whether legally or otherwise) where the Trustee or Manager shall be directed or requested to do or perform or to forbear from doing or performing any act or thing.

27.4 The Trustee and Manager shall be entitled to require that the signature of any Unit Holder or joint Unit Holder to any document required to be signed by him under or in connection with this Trust Deed shall be verified by a banker or broker or other responsible person or otherwise authenticated to their reasonable satisfaction.

The Trustee shall not by reason of its office be precluded from purchasing, holding, dealing in or disposing of Units nor from contracting or entering any financial, banking or other transaction with the Manager or any Unit Holder or any company or body with an interest in any Unit(s) or from being interested in any such contract or transaction or from holding any shares or any investment in any such company or body. The Trustee shall not except as otherwise herein provided be in any way liable to account either to the Manager or to the Unit Holders or any of them for any profits or benefits made or derived by the Trustee thereby or in connection therewith.

27.6 The Trustee has an obligation to prosecute, settle or defend any action or suit in respect of the provisions hereof or in respect of the Assets or any part thereof or take part in or consent to any corporate action which in its opinion might involve it in any expense or liability provided that any costs reasonably incurred by the Trustee in prosecuting, settling or defending such action or suit shall be borne by the Fund.

27.7 Subject to the prior consent of the Trustee in each case, the Manager may from time to time for the account of the Fund, enter into underwriting and sub-underwriting contracts, SUBJECT to the Commission's review, in relation to the subscription or purchase of Authorised Investments upon such terms in all respects as it shall think fit (but subject always to the provisions of this Deed and so that no such contract shall relate to an investment which if acquired would constitute a holding in excess of the limits specified in Clause 18 hereof) and all commissions or other fees received by the Manager and all Authorised Investments or cash acquired pursuant to any such contract shall form part of the Assets.

27.8 The Trustee shall not be liable to account to any Unit Holder or otherwise for any payment made or suffered by the Trustee in good faith to any duly empowered fiscal authority of Nigeria or elsewhere for taxes or other charges in any way arising out of or relating to any transaction of whatsoever nature under these presents.

27.9 The Trustee shall not be under any liability on account of anything done or suffered by them in good faith in accordance with or in pursuance of any request, notice, direction or advice of the Manager. Whenever a notice or other communication is to be given by the Manager to the Trustee the latter accepts as sufficient evidence thereof a document signed on behalf of the Manager by any person whose signature the Trustee is for the time being authorized in writing by the Manager to accept.

27.10 The Trustee shall as regards all the powers and discretion vested in them by these presents have absolute and uncontrolled discretion as to the exercise or non-exercise thereof and in the absence of fraud or negligence the Trustee shall not in any way be responsible for any loss, costs or damages that may result from the exercise or non-exercise thereof.

27.11 The Trustee may act upon the advice of or statement or information obtained from stockbrokers, accountants, lawyers, bankers or other persons believed by the Trustee in good faith to be experts in the matters on which they have been consulted whether instructed by the Trustee or Manager and the Trustee shall not be liable for anything done or omitted or suffered to be done by it in reliance upon such advice, statement or information.

27.12 The Trustee shall not be responsible for the acts of its duly appointed lawyer, banker, accountant, broker or any other agent acting on the instruction of the Trustee within the course and scope of its appointment (unless the Trustee fails to exercise the degree of care and diligence required of a trustee) PROVIDED that where the Trustee is held liable for the acts of any of its agents, the Trustee will be entitled to be indemnified by such agent.

27.13 The Trustee shall be liable for any breach of its duties where it fails to carry out its responsibilities under this Trust Deed or where it fails to report a breach of any of the terms of this Trust Deed to the Commission within 10 (ten) Business Days after the occurrence of such breach.

27.14 The Manager shall in no way be liable to make any payment hereunder to any person except out of the monies of the Fund set aside for that purpose.

27.15 If for any reason it becomes impossible or impracticable to carry out any of the provisions of any Clause in this Deed, neither the Manager nor the Trustee shall incur liability for any error of law in the absence of fraud or negligence in connection with any matter or thing done or suffered to be done or omitted to be done by them in good faith hereunder PROVIDED always that nothing in this section may be construed as exempting the Trustee from, or indemnifying the Trustee against liability for breach of trust arising from any fraudulent or negligent act or omission on its part or any other breach of duty hereunder.

27.16 The Manager shall not be under any liability except such liability as may be expressly assumed by it under this Deed or imposed by law nor shall the Manager (save as herein otherwise appears) be liable for any act or omission of the Trustee or for anything except its own breach of duty hereunder.

27.17 Subject to Clause 27.14, the Trustee shall not be bound to make any payment to any person except out of the funds held by it for that purpose under the provisions of this Deed.

27.18 The Trustee and the Fund Manager shall not be responsible for acting upon any resolution purporting to have been passed at a Meeting of the Unit Holders in respect whereof minutes shall have been made and signed even though it may be subsequently found that there was some defect in the constitution of the Meeting or the passing of the resolution or that for any reason the resolution was not binding upon all the Unit Holders.

27.19 With the exception of the selection of investments and except as otherwise set out herein, the Trustee covenants that effective control over the affairs of this Fund shall be vested in the Trustee and will be independently exercised by the Trustee on behalf of the Unit Holders.

27.20 The Trustee undertakes to notify the Commission of any proposed change in the management of the Fund during the entire period of existence of the Fund.

27.21 Subject to the provisions of this Deed, the selection of all investments whether partly paid or not and the retention of cash shall, in all respects, be the sole responsibility of the Manager who shall exercise due diligence and prudence in its selection process having due regard to the Investment Policy of the Fund in such selection.

27.22 Nothing herein shall prevent the Trustee, or a company affiliated with the Trustee, from contracting or entering into any financial, banking or other transactions with the Manager or a company affiliated with the Manager or any Unit Holder or any company or body whose shares or securities form part of the Assets or from being interested in any such contract or transaction provided that such transactions will not amount to conflict of interest, and will not have any adverse effect on the asset of the fund . The Trustee and any such affiliated company shall not be liable to account to the Manager or the Unit Holders or any of them for any profit or benefit made or derived from or in connection with any such transactions.

28. MANAGER AND TRUSTEE ACTING FOR OTHER TRUSTS

The Manager and Trustee shall be entitled whether in conjunction or separately to establish and act as Manager and Trustee for other trusts separate and distinct from this Trust.

29. CONDITIONS FOR EFFECTING TRANSACTIONS OR DEALINGS

Notwithstanding anything herein contained, neither the Trustee nor the Manager and/or any other party shall be required to effect any transaction or dealing with any Unit Holder or with any part of the investments of the Assets on behalf of or for the benefit of or at the request of any Unit Holder unless such Unit Holder shall first have paid the Trustee, the Manager or such other party to its or their satisfaction as the case may be such amount sufficient to cover all duties and charges and any necessary stamp duty which may have become or may be payable in respect of or prior to or upon the occasion of such transaction or dealing PROVIDED always that the Trustee, the Manager or such other party shall be entitled to as it or they may think fit pay and discharge all or any of such duties, charges or stamp duty on behalf of the Unit Holder and to retain the amount so paid out of any money or property to which such Unit Holder may be or become entitled in respect of his Unit or otherwise however hereunder.

30. DUTIES AND RESPONSIBILITES OF THE MANAGER AND TRUSTEE

30.1 **The duties and responsibilities of the Manager are as follows:**

30.1.1 The Manager shall not make profit for itself from transactions in any Assets held under the Fund.

30.1.2 The Manager shall not borrow money on behalf of the Fund for the purpose of acquiring securities or other property for the Fund.

30.1.3 The Manager shall not lend money that is subject to the trusts of the Fund to a person to enable him to purchase Units of the Fund.

30.1.4 Subject to [Clause 3.6] above, the Manager shall not mortgage, charge or impose any other encumbrance on any securities or other property subject to the trust of the Fund.

30.1.5 The Manager shall not engage in any transactions with respect to or for the Fund that are not, in its opinion, in the best interests of Unit Holders and of the Fund.

30.1.6 The Manager shall not deviate from or alter the Investment Policy of the Trust without due recourse to the provisions of this Deed and the law regarding same.

30.1.7 The Manager shall exercise due prudence in all its dealings with the monies of the Fund.

30.1.8 The Manager shall give written notice to the Commission of any proposal to alter this Deed or replace the Trustee as required by Section 187 of the Investments and Securities Act.

30.1.9 The Manager shall ensure that upon receipt of a request from the Trustee, each of its directors or employees shall submit to the Trustee any book, document or other information in their possession or disposal which relates to the administration of the Fund by the Manager and which the Trustee considers necessary to perform its functions.

30.1.10 The Manager shall not interfere with the performance by the Trustee of its functions under the provisions of the Investments and Securities Act and this Deed.

30.1.11 In accordance with [Clause 34.1], the Manager shall cause proper books of account to be kept and annual accounts to be prepared which give a fair and true view of the affairs of the Fund during the period covered by such accounts.

30.1.12 The Manager shall cause the annual accounts to be audited by the Auditor appointed in accordance with Clause 35.1.

30.2 **The duties and responsibilities of the Trustee are as follows:**

The duties and responsibilities of the Trustee shall include but not limited to but subject to any provisions of ISA and the Commission's Rules (as amended from time to time):

30.2.1 The Trustee shall stand possessed of the Deposited Property upon trust for the Unit Holders. The Deposited Property shall be held as single common fund and no Unit shall confer any interest or share in any particular part of the Deposited Property.

30.2.2 The Trustee shall monitor the activities of the Manager on behalf of and in the interest of the Unit Holders.

30.2.3 The Trustee shall undertake to notify the Commission about any proposed change in the management of the Fund during the currency of the Fund.

30.2.4 The Trustee shall monitor the Register of Unit Holders kept in the custody of the Registrar.

30.2.5 The Trustee shall, whenever it becomes necessary for the Trustee to enforce the terms and conditions of this Deed, do so within 20 (twenty) Business Days of becoming aware of the breach and shall inform the Commission of the breach not later than 10 (ten) Business Days after becoming aware of its occurrence..

30.2.6 The Trustee shall carry out the instructions of the Manager unless they are inconsistent with ISA or this Deed.

30.2.7 The Trustee shall ascertain that the Manager complies with the provisions of the Investment and Securities Act and this Deed as it relates to the application and management of Fund..

30.2.8 The Trustee shall ensure that transactions involving the assets of the Fund, and any consideration are remitted to it within time limits which are acceptable market practices in the context of the particular transaction.

30.2.9 The Trustee shall ascertain that monthly and other periodic returns/reports relating to the Fund are sent by the Manager to the Commission.

30.2.10 The Trustee shall ensure that the fees and expenses of the Funds are remitted within the prescribed limits as provided by the Investment Management Committee.

30.2.11 The Trustee shall verify that the income accruals of the Fund are applied in accordance with ISA and this Deed.

30.2.12 The Trustee shall take all steps in executing all documents which are necessary to secure acquisitions or disposals properly made by the Manager in accordance with this Deed.

30.2.13 The Trustee shall report to the Manager any irregularity or undesirable practice, concerning the Fund of which it is aware and if steps to rectify the irregularity or practice in question are not taken to the satisfaction of the Trustee, it shall report such irregularity or undesirable practice to the Commission.

30.2.14 The Trustee shall exercise any right of voting conferred on it as the registered holder of any investment and/or forward to the Manager within a reasonable time all notices of meetings, reports, circulars, proxy solicitations and any other document of a like nature for necessary action.

30.2.15 The Trustee shall carry out monitoring, oversight, administrative and other function required in accordance with this Deed and such other requirements provided for from time to time by the Commission.

30.2.16 The Trustee shall keep the Unit Holder informed of actions taken or to be taken by the Manager having a bearing on the benefits accruing to the Unit Holder.

30.2.17 The Trustee shall act at all times in the interest of and the benefit of the Unit Holders.

31. REMOVAL OR RETIREMENT AND APPOINTMENT OF MANAGER

31.1 In the event of the retirement of the Manager, the Trustee shall use its best endeavours to find a new Manager. If no suitable replacement is identified within six (6) months from the date of the Manager's notice to retire, the Trustee may terminate the Trust by giving 6 (six) months' notice to the Unit Holders, the Manager and the Commission.

31.2 The Manager shall be subject to removal by notice in writing given by the Trustee in any of the following circumstances PROVIDED THAT in every case, the proposed removal has been approved by the Commission or 1 (one) month has passed since notice was served on the Commission, without the Commission having notified the Trustee that the proposed removal is not approved before service on the Manager:

31.2.1 the Unit Holders representing more than 75% of the Units for the time being outstanding deliver to the Trustee a request in writing that the Manager should retire; or

31.2.2 the Manager goes into liquidation (except for a voluntary liquidation for the purpose of reconstruction or amalgamation upon terms previously approved in writing by the Trustee) or if a receiver is appointed over any of its assets; or

31.2.3 the Trustee certifies and provides evidence to the satisfaction of the Commission to the effect that the Manager has been fraudulent or has acted with gross misconduct in its management of the Fund and it is in the best interests of the Unit Holders that the Manager should be removed.

31.3 In any of the cases, the Manager shall upon notice by the Trustee immediately cease to be the Manager and the Trustee shall by writing under its seal, subject to approval by the Commission, appoint some other qualified corporation to be the manager. Such corporation shall enter such Deed or Deeds, subject to the approval of the Commission, as the Trustee may advise are necessary or desirable to be entered by such corporation in order to secure the due performance of its duties as manager which deed or deeds shall provide that neither the Trustee nor the new manager shall hold themselves out as being connected with the retiring manager in any way and furthermore shall provide that the manager to be appointed hereunder shall purchase from the retiring manager all Units of which it is a Unit Holder or deemed to be a Unit Holder at the realization price.

32. REMOVAL, RETIREMENT AND APPOINTMENT OF TRUSTEE

32.1 Pursuant to the provisions of Sections 178 and 187 of the Investments and Securities Act, prior to the retirement or removal of the Trustee, the Manager shall notify the Commission and give reasons for such retirement or removal and confirm the suitability of the new trustee to be appointed in replacement.

32.2 In the event the Trustee express intent, in writing its desire to retire, the Manager shall use its best endeavours to appoint a new Trustee within 3 (three) months of notice by the Trustee of its intention to retire. The new Trustee shall be an incorporated company registered with the Commission and approved by a majority of the Unit Holders. If no new Trustee can be identified within that period the Manager may terminate the Trust.

32.3 The Trustee shall be subject to removal by notice in writing from the Manager in any of the following circumstances PROVIDED THAT in either case, the proposed removal has been approved by the Commission or 1 (one) month has passed since notice was served on the Commission, without the Commission having notified the Manager that the proposed removal is not approved before service on the Trustee:

32.3.1 if Unit Holders holding not less than 75% of the Units outstanding deliver to the Manager a request in writing that the Trustee should retire;

32.3.2 if the Trustee goes into liquidation (except for a voluntary liquidation for the purpose of reconstruction or amalgamation upon terms previously approved in writing by the Manager) or if a receiver is appointed over any of its assets;

32.3.3 if in the opinion of the Manager, which opinion is confirmed by Unit Holders holding a simple majority of the Units Outstanding attending the meeting in person or by proxy, the Trustee shall be incapable of performing or shall have in fact failed to perform its duties satisfactorily or shall have done any other thing which is

calculated to bring the Fund into disrepute or be harmful to the best interests of the Unit Holders or is a breach of the Trustees' fiduciary duties to the Fund. Upon removal of the Trustee, the Manager shall by writing under its seal subject to the approval of the Commission appoint some other qualified corporation to be the Trustee and such corporation shall enter such Deed or Deeds as the Manager deems it necessary or desirable to be entered by such corporation in order to secure the due performance of its duties as Trustee.

33. PREPARATION OF STATEMENTS OF UNIT HOLDING, CHEQUES AND WARRANTS

33.1 It shall be the duty of the Registrar to prepare all Statements of Unit Holding and to prepare and pay all cheques and warrants related to distributions.

33.2 The Manager shall prepare all notices, accounts, offers or statements which the provisions of this Trust Deed require to be prepared, issued, served or sent.

34. AUDITING OF THE FUND'S ACCOUNTS

34.1 At least once in every Financial Year, the Manager shall cause to be audited and certified by the Auditors, the accounts relating to the management of the Fund. The audited accounts of the Fund shall be signed by the Manager and the Trustee.

34.2 The audited financial statement of the Fund shall be circulated to the Unit Holders no later than 4 (four) months after the end of each Financial Year.

34.3 A copy of the Auditor's Report shall be sent by the Manager to the Commission and shall also be published in a national newspaper within 3 (three) months following the period to which the accounts relate or as the Commission may from time to time specify.

34.4 The Manager may appoint tax consultants or such other accounting or tax professionals as it may determine from time to time.

35. AUDITORS

35.1 The Auditor shall be appointed by the Manager with the approval of the Trustee. The Auditor shall be a person who is qualified for appointment as an auditor of a company under Section 358 of the Companies and Allied Matters Act. The Manager shall apply to the Commission for the approval of the appointment of the Auditor within 30 (thirty) days of such appointment. The Auditor appointed shall be duly registered with the Commission in accordance with Section 184(1) of the Investments and Securities Act.

35.2 Any Auditor appointed may be removed by the Manager with the approval of the Trustee by notice thereof to the Auditors.

35.3 Any Auditor appointed may be removed by the Trustee in agreement with the Manager by notice in writing to the Auditors.

35.4 The remuneration of the Auditor shall be fixed by the Manager.

35.5 The Auditor of the Fund may resign by serving a notice in writing to that effect at the registered office of the Trustee and any such notice shall operate to determine their resignation on the date on which notice is received or on such later date as may be specified therein.

35.6 The Auditor's notice of resignation shall not be effective unless it contains either:

35.6.1 a statement to the effect that there are no circumstances connected with their resignation which they consider should be brought to the notice of the Unit Holders; or

35.6.2 a statement setting out the circumstances connected with their resignation which they consider should be brought to the notice of the Unit Holders.

35.7 Where a notice under this section is served at the Trustee's registered office, the Trustee shall within 10 (ten) Business Days send a copy of the notice to the Manager.

36. DURATION AND TERMINATION OF THE TRUST

36.1 The Trust constituted by this Deed shall be for a period of 99 (ninety-nine) years subject only to the provisions for termination as are herein contained.

36.2 The Trustee or Manager shall have absolute discretion to terminate the Trust by issuing no less than 6 (six) months' notice thereof in writing to the other as well as to the Unit Holders and the Commission.

36.3 The Trust may be terminated with the approval of the Trustee upon not less than 6 (six) months' notice in writing by the Trustee to the Manager, Unit Holders and the Commission upon occurrence of any of the following events:

36.3.1 if the Manager shall go into liquidation (except for a voluntary liquidation for the purpose of reconstruction or amalgamation upon terms previously approved in writing by the Trustee) or if a receiver is appointed over any of its assets or if it shall cease to carry on business; or

36.3.2 if in the opinion of the Trustee, the Manager shall be incapable of performing or shall in fact fail to perform its duties satisfactorily or shall do any other thing which in the opinion of the Trustee is calculated to bring the Trust into disrepute or to be harmful to the best interests of the Unit Holders; or

36.3.3 if the Trust shall [cease to be predominantly a fixed income Fund] or in the event of its becoming illegal or if in the opinion of the Trustee, it is impracticable or inadvisable to continue the Trust.

36.4 The Trust may at any time be terminated by a Special Resolution of the Unit Holders at a Meeting duly convened and held in accordance with the provisions herein contained regarding Meetings and such termination shall take effect no less than 6 (six) months from

the date on which the said Special Resolution is passed or on such later date (if any) as the said Special Resolution may provide.

36.5 The Trust may be duly terminated by the Commission where any of the activities of the Trust is outside the ambit of permissible activities as provided for by the Investments and Securities Act, any relevant regulations enacted thereunder and/or any other applicable laws or where the Commission's approval of the Fund is withdrawn.

36.6 The Manager may by notice to the Commission, Unit Holders and the Trustee terminate the Fund if in the opinion of the Manager the value of the Fund's assets is insufficient to justify the continued operation of the Fund or if, due to a change in law or other circumstance deemed appropriate by the Manager, the continued operation of the Fund is no longer justified.

36.7 In the event of termination, the liquidation of the Fund and redemption of the Unit Holders' Units will be satisfied solely out of the assets of the Fund without recourse to the assets of the Manager.

37. PROCEDURE AFTER TERMINATION OF THE TRUST

Upon the Trust being terminated, the Trustee shall proceed in compliance with Rule 453 of the SEC Rules.as follows:

37.1.1 procure the sale of all investments held in Trust as part of the Assets and pay therefrom all liabilities properly payable. Such sale shall be carried out in such manner and within such period after the termination of the Trust as the Trustee deems fit; and

37.1.2 distribute or effect the distribution to the Unitholders in proportion to their Units all net cash proceeds derived from the realisation of the Assets and available for the purpose of such distribution. Every such distribution shall be made conditional on the lodging of such form of request for payment and receipt that the Trustee may in its absolute discretion require PROVIDED that the Trustee shall be entitled to retain out of any monies in its hands as part of the Assets as provision for all costs, charges, expenses, claims and demands incurred or made by the Trustee in connection with or arising out of the termination of this Trust and out of the monies so retained to be indemnified against any such costs, charges, expenses, claims and demands.

37.2 In the event of the winding up of the Fund, the Manager, the Trustee shall ensure compliance with Rule 453 of the SEC Rules.

38. MEETINGS

38.1 The Manager shall call an Annual General Meeting of Unit Holders with the consent of the Trustee, not later than 4 (four) months after the end of each Financial Year to consider the accounts and other matters affecting the Fund.

38.2 The provisions of the [Second Schedule] to this Deed shall have effect as if the same were included herein and shall apply to Meetings of the Fund in so far as that Schedule does not conflict with any applicable law.

39. CIRCULARS AND ADVERTISEMENTS

39.1 No advertisement, circular or other document of that nature containing any statement with reference to the price of Units or containing any invitation to buy Units shall be issued by or on behalf of the Manager unless such documents also contains a statement with respect to the yield from the Unit.

39.2 No advertisement, circular or other document of that nature containing any statement with respect to the issue price of Units or the payments or other benefits received or likely to be received by Unit Holders or containing any invitation to buy Units shall be issued by or on behalf of the Manager until the Trustee has had a reasonable opportunity to consider the terms of the document. No such document shall be issued if within 10 (ten) days after the document first comes under the Trustee's consideration, the Trustee notifies its disapproval of the terms thereof in writing to the Manager.

39.3 All letters, circulars, advertisements or other publications referring to the issue or sale of Units, reference shall be made to the Trustee only in terms previously consented to by the Trustee and the Commission.

39.4 No advertisement, circular, letter or other document referred to above shall be issued without the prior approval of the Commission being obtained.

40. NOTICES

40.1 All notices or other documents directed to be given or sent by the Trustee or the Manager to a Unit Holder shall (unless the Trustee or the Manager shall otherwise direct in writing) be sent by post, fax, or courier to him at his address as appearing in the Register. Any notice shall be deemed to have been received by the Unit Holder on the same day as shown on the notice if sent by email or on the third day following the day on which the notice was sent by post or courier.

40.2 A notice required to be given to the Trustee or the Manager shall be sent to the address of the Trustee or the Manager, as the case may be, set out on the initial page of this Deed unless such party otherwise directs in writing.

41. PAYMENT

41.1 Any monies payable by the Trustee or by the Manager to a Unit Holder or former Unit Holder under the provisions of these presents may be paid by electronic transfer or warrant made payable to the registered address of such Unit Holder. Every electronic transfer or warrant shall be sent at the risk of the Unit Holder and payment of any such electronic transfer or warrant shall be satisfaction of the monies payable thereby and shall be a good discharge of the Trustee and Manager. Where an authority in writing shall have been received by the Trustee or Manager from the Unit Holder or former Unit Holder in such

form and signed or sealed in such manner as the Trustee or Manager shall direct, authorising the Trustee or Manager to pay any monies due to him to a banker, agent or nominee, the Trustee, Manager or Registrar shall pay the monies payable to the Unit Holder as the case may be in the same manner and with the same effect as hereinbefore provided as if such banker, agent or nominee were the Unit Holder.

41.2 Without prejudice to the above, a receipt signed by a Unit Holder or former Unit Holder for any monies payable in respect of Units held or formerly held by him shall be a good discharge to the Trustee and Manager.

42. COPIES OF TRUST DEED TO BE MADE AVAILABLE

42.1 A copy of this Trust Deed and of any Deed supplemental hereto shall, at all times, during usual business hours be made available by the Manager and the Trustee at their respective head offices for inspection by Unit Holders and any Unit Holder shall be entitled to receive from the Manager a copy of such Deed(s) as aforesaid on production of his Statement(s) of Unit Holding and making payment to the Manager of the prescribed amount for each copy of the document.

42.2 The Trustee shall keep an original copy of the Trust Deed.

43. RECONSTRUCTION AND AMALGAMATION

43.1 The Trust may be reconstructed or amalgamated upon the following conditions being satisfied:

43.1.1 the Manager has agreed with the manager of some other trust, the terms and conditions of a scheme of reconstruction and amalgamation;

43.1.2 the Trustee has not dissented from the proposed reconstruction or amalgamation; and

43.1.3 the Unit Holders have been informed of the particulars of the proposed reconstruction or amalgamation in a manner approved by the Trustee and a Special Resolution has been passed at a Meeting of the Unit Holders approving such proposed reconstruction or amalgamation.

43.2 If such conditions have been fulfilled, the proposed reconstruction or amalgamation shall take effect upon the date on which such conditions are satisfied or such later date as the Trustee may provide whereupon the terms of the Trust shall be binding upon all the Unit Holders who shall be bound to give effect thereto accordingly and the Manager and the Trustee shall do all such acts and things as may be necessary or requisite for the implementation thereof.

44. POWER OF MODIFICATION BY SUPPLEMENTAL DEED

The Trustee and Manager shall be entitled by supplemental deed to consolidate, modify, alter or add to the provisions of this Deed in such manner and to such extent as they may

consider necessary or expedient having regard to any issues that they may consider relevant PROVIDED that the Trustee shall certify in writing that in its opinion such consolidation, modification, alteration or addition does not prejudice the interests of the Unit Holders and that it is its opinion that such consolidation, modification, alteration or addition does not operate to release the Trustee or Manager from any responsibility to the Unit Holders. No such consolidation, modification, alteration or addition shall be made without the sanction of a Special Resolution passed at a Meeting of Unit Holders duly convened and held. No such consolidation, modification, alteration or addition shall impose any further payment on the Unit Holder in respect of his Units or any liability in respect thereof.

PROVIDED always that notwithstanding the above, the Manager and the Trustee shall seek the approval of the Commission for any proposed modification to the Trust Deed by service of notice on the Commission. Such proposed change shall not be given effect until the proposed change has been approved by the Commission.

45. COMPLIANCE

45.1 The Manager shall ensure that it prepares and submits regulatory reports to the Commission and Trustee.

45.2 The Trustee shall at all times in the cause of administering this Trust comply and also ensure compliance by the Manager with the provisions of the Investment and Securities Act and the rules and regulations made thereunder. The Trustee shall specifically submit to the Commission periodic reports pertaining to the due administration of the Trust including reports on whether the Fund has been administered in accordance with the provisions of the Investments and Securities Act and this Deed.

46. MISCELLANEOUS

46.2 Without prejudice to any other provision hereof, if any provision of this Deed is prohibited or unenforceable or rendered unenforceable, unlawful, invalid or illegal, such invalidity, illegality, unenforceability, prohibition or unlawfulness shall not to the extent permitted by law render invalid, unenforceable, unlawful, illegal or prohibited the other provisions of this Deed.

47. GOVERNING LAW

This Deed shall be governed by and construed in all respects in accordance with the laws of the Federal Republic of Nigeria.

48. DISPUTE RESOLUTION

48.1 Whenever a dispute arises between the parties, the Commission shall be notified within 5 (five) working days.

48.2 A maximum period of 10 (ten) working days will be allowed for the parties to resolve the dispute themselves or to appoint arbitrators. In the event that parties are unable to settle the dispute amicably the dispute shall be submitted to arbitration.

48.3 The arbitration panel shall consist of 3 (three) arbitrators, one appointed by each party, and the third who shall preside over the Panel shall be appointed by the 2 (two) arbitrators appointed by the parties. Where the 2 (two) appointed Arbitrators are unable to agree on the choice of the third arbitrator within 2 (two) working days of their own independent appointments the choice of such arbitrator shall be referred to the President of the Chartered Institute of Arbitrators Nigeria at the request of any of the parties to this agreement.

48.4 The arbitrators shall have a maximum period of 10 (ten) Business Days to resolve the dispute after the exchange of pleadings, failing which the matter shall be referred to the Commission for resolution.

48.5 Any party aggrieved by the decision of the SEC may refer the matter to the Investments and Securities Tribunal (I.S.T) established in accordance with the provisions of the Investments and Securities Act, for resolution.

48.6 Each party shall bear its own costs and expenses in relation to the arbitral proceedings unless the arbitral award states otherwise.

48.7 Arbitration pursuant to this agreement shall be in accordance with the Arbitration and Conciliation Act CAP A18, Laws of the Federation of Nigeria 2004 and the place of arbitration shall be in Nigeria.

THE FIRST SCHEDULE

STATEMENT OF UNITHOLDING

Statement No	**No of Units**	
[INSERT NUMBER]	[INSERT NUMBER]	

PACAM EURO FUND

This is to certify that

[INSERT FULL NAME OF UNITHOLDER]

of

[INSERT RESIDENTIAL ADDRESS]

is the registered holder of [INSERT NUMBER] units in the above named fund subject to the provisions of the Trust Deed dated [•] between PAC Asset Management Limited and CSL Trustees Limited

This statement was authorized by:

Fund Manager _____ ***Date*** _____

Trustee _____ ***Date*** ___

All enquiries in respect of this Statement of Unitholding or any other matters relating to this Unitholding must be directed to: PAC Registrars, 8A, Elsie Femi Pearse Street, Victoria Island, Lagos, Nigeria

THE SECOND SCHEDULE

PROVISIONS FOR MEETINGS OF THE UNIT HOLDERS

1. The Fund shall in each year after the year of its inception hold a general meeting as its Annual General Meeting which meeting shall be in addition to any other meeting in that year. The Manager shall in the notice convening such meeting specify that the meeting is an Annual General Meeting and that the ordinary business of the meeting shall include the presentation of the Audited Financial Accounts, the Manager's Reports, the appointment of the Auditors and where applicable, the declaration of a distribution. Any other business transacted at the Annual General Meeting shall be deemed special business.

2. The Trustee, the Manager with the consent of the Trustee or the Manager shall at the request in writing of Unit Holders holding not less than twenty five per cent (25%) in value of the Units for the time being outstanding (other than Units of which the Manager is beneficial owner) may convene a meeting of Unit Holders.

3. **Notice of Meetings**

3.1 The notice required for all Meetings of the Fund shall from the commencement of this Trust Deed be 21 (twenty-one) days from the date on which the notice was sent out exclusive of the date of service and the date of the Meeting.

3.2 A meeting of the Fund shall notwithstanding that it is called by a shorter notice than that specified in sub-clause 3.1 above be deemed to have been duly called if it is so agreed by Unit Holders representing not less than ninety-five percent (95%) in nominal value of the Units Outstanding.

3.3 An Extraordinary Meeting of the Unit Holders may be convened:

3.3.1 by the Manager with the consent of the Trustee; or

3.3.2 at the request of the Trustee; or

3.3.3 by a requisition of Unit Holders holding 25% (twenty five per cent) in value of the Units; or

3.3.4 by a Court on application by a Unit Holder where the Court is satisfied that it is just and equitable to do so.

4. **Contents of Notice**

(a) The notice of a Meeting shall specify the place, date and time of the Meeting and the general nature of the business to be transacted thereat in sufficient detail to enable those to whom it is given to decide whether to attend or not and where the Meeting is to

consider a Special Resolution the notice shall set out the terms of the proposed Special Resolution.

(b) No business may be transacted at any Meeting unless notice of it has been duly given.

(c) An error or omission in a notice with respect to the place, date, time or general nature of the business of a Meeting shall not invalidate the Meeting unless persons responsible for the error or omission acted in bad faith or failed to exercise due care and diligence provided that in such a case the person or persons responsible shall effect the necessary correction either before or during the Meeting.

5. **Persons Entitled to Notice**

Only the following persons shall be entitled to receive notice of a Meeting:

a. Every Unit Holder;

b. Every person upon whom the ownership of a Unit devolves by reason of his being a legal representative, receiver, a trustee in bankruptcy or a trustee in lunacy of a Unit Holder;

c. The Trustee if the meeting is called by any other person;

d. The Manager if the meeting is called by any other person;

e. The Commission; and

f. The Auditors (in the case of an Annual General Meeting or at any General Meeting at which the Accounts of the Fund are to be considered).

PROVIDED THAT none of the persons mentioned in clauses (c) and (d) above shall be entitled to vote at any Meeting at which they are in attendance except in their capacity as a Unit Holder.

6. **Service of Notice**

(a) Notice may be served by the Manager on any Unit Holder either personally or by fax, telex, e-mail or courier to the Unit Holder at his registered address or (if he has no registered address within Nigeria) to the address if any supplied by the Unit Holder to the Fund for the receipt of mail and notices.

(b) Where a notice is sent by fax, e-mail or telex it shall be deemed effective on the date shown in the letter and where it is sent by courier it shall be deemed effective within 3 (three) days of the date shown on the letter.

(c) Notice may be served by the Fund on the persons entitled to a Unit in consequence of the death or bankruptcy or lunacy of a Unit Holder by sending it to the person who has become so entitled in his name or by the title of representative of the deceased's estate or trustee in bankruptcy or lunatic or to any address within Nigeria supplied for the purpose by the person claiming to be so entitled or (until such an address has been so supplied) by giving the notice in any manner in which the same might have been given if the death or bankruptcy had not occurred.

7. **Failure to Give Notice**

(a) Failure to give notice of any Meeting to a person entitled to it shall not invalidate the Meeting where such failure is an accidental omission on the part of the person or persons giving the notice.

(b) Failure to give notice to a person entitled due to a misrepresentation or misinterpretation of the provisions of the Trust Deed shall not amount to an accidental omission for the purposes of the foregoing sub-section.

8. **Power of Court to Order Meetings**

(a) If for any reason it is impracticable to call a Meeting of the Fund in any manner in which Meetings of the Fund may be called or to conduct the Meetings of the Fund in the manner prescribed by the Trust Deed, the Court may either of its own motion or on the application of any Unit Holder who would be entitled to vote at the Meeting of the Fund to be called order that the Meeting be held in such manner as the Court thinks fit and where any such order is made the Court may give such ancillary or consequential directions as it thinks expedient.

(b) It is hereby declared that the direction that may be given under sub-section (a) of this section shall include a direction that one Unit Holder present in person or by proxy in the Meeting may apply to the Court for an order to take a decision which shall bind all the Unit Holders.

(c) Any Meeting called, held and conducted in accordance with an order issued under sub-section (a) of this section shall for all purposes be deemed to be a Meeting of the Fund duly called, held and conducted.

9. **Voting Procedure**

(a) At any Meeting a resolution put to the vote shall be decided on a show of hands unless a poll is (before or on the declaration of the result of the show of hands) demanded by any of the following:

(i) The Chairman; or

(ii) A group of at least 10 (ten) Unit Holders present in person or by proxy; or

(iii) Any Unit Holder or Unit Holders present in person or by proxy and representing not less than one-tenth of the total voting rights of all the Unit Holders having the right to vote at the Meeting.

(b) Unless a poll is so demanded a declaration by the Chairman that a resolution has on a show of hands been carried or carried unanimously or by a particular majority or defeated and an entry to that effect in the book containing the minutes of the proceedings of the Meeting shall be conclusive evidence of the fact.

(c) In the case of joint Unit Holders the vote of the senior who tenders a vote whether in person or by proxy shall be accepted to the exclusion of the votes of other joint holders, and for this purpose seniority shall be determined by the order in which the names stand in the register of Unit Holders.

10. **Voting on a Poll**

(a) Each Unit entitles the Unit Holder to one vote on a poll taken at a Meeting in respect of each of those Units held by him. A Unit Holder entitled to more than one vote need not, if he votes, use all his votes or cast all the votes he uses in the same way.

(b) Except as provided in sub-clause (d) below, a poll if demanded and taken shall be deemed to be the resolution of the Meeting at which the poll was demanded.

(c) In the case of an equality of votes whether on a show of hands or on a poll the Chairman of the Meeting at which the show of hands takes place or at which the poll is demanded shall be entitled to a second or casting vote.

(d) A poll demanded on a question of adjournment shall be taken forthwith and on any other question shall be taken at such time as the Chairman of the Meeting directs and any business other than that upon which a poll has been demanded may be proceeded with pending the taking of the poll.

(e) The demand for a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded

11. **Rights of Attendance at Meetings**

(a) Every Unit Holder or his legal representative has the right to attend any Meeting of the Fund and to speak and vote on any resolution.

(b) Every person who is entitled to receive notice of a Meeting of the Fund shall be entitled to attend such a Meeting.

12. Proxies

(a) Any Unit Holder entitled to attend and vote at a Meeting of the Fund shall be entitled to appoint another person as his proxy (whether a Unit Holder or not) to attend and vote instead of him and a proxy so appointed to attend and vote instead of a Unit Holder shall also have the same rights as the Unit Holder at the Meeting.

(b) In every notice calling a Meeting of the Fund there shall appear with reasonable prominence a statement that a Unit Holder is entitled to appoint a proxy to attend and vote instead of him and that the proxy need not be a Unit Holder.

(c) No instrument appointing a proxy shall be valid after the expiration of twelve months from the date named in it as the date of execution. An instrument appointing a proxy shall be deemed to confer authority to demand or to join in a demand for a poll.

(d) A vote given in accordance with the terms of an instrument of proxy shall be valid notwithstanding the previous death or insanity of the principal or revocation of the proxy or of the authority under which the proxy was executed or the transfer of the Unit in respect of which the proxy is given PROVIDED that no intimation in writing of such death, insanity, revocation or transfer as aforesaid has been received by the Manager before the commencement of the Meeting or adjourned Meeting at which the proxy is used.

(e) The instrument appointing a proxy shall be in writing under the hand of the appointer or his attorney duly authorized in writing or if the appointer is a corporation either under seal or under the hand of an officer or attorney duly authorized and shall be duly stamped at the stamp duties office.

(f) The instrument appointing a proxy and the power of attorney or other authority if any under which it is signed or a certified copy of the power or authority shall be deposited at the registered office or head office of the Manager or at such other place within Nigeria as is specified for that purpose in the notice convening the Meeting, not less than 48 (forty-eight) hours before the time which the person named in the instrument proposes to vote or in the case of a poll not less than 24 (twenty-four) hours before the time appointed for the taking of the poll and in default, the instrument of proxy shall not be treated as valid.

(g) An instrument of proxy shall be in such form as may be approved by the Trustee.

13. Corporate Representation

Any corporation which is a Unit Holder may by writing under the hand of a duly authorized officer authorize such person as it thinks fit to act as its representative at any Meeting of the Unit Holders and the person so authorized shall be entitled to exercise the same power on behalf of the corporation which he represents as that corporation could exercise if it were an individual Unit Holder.

14. Quorum

(a) It shall be deemed that no business shall be transacted at any Meeting unless a quorum of Unit Holders were present at the commencement and throughout the Meeting.

(b) The quorum for an Annual General Meeting of the Fund shall be formed by Unit Holders holding 25% of the Units Outstanding whether present in person or by proxy. The quorum for an Extra-ordinary General Meeting of the Fund shall be formed by Unit Holders holding 25% of the Units Outstanding whether present in person or by proxy.

(c) For the purpose of determining a quorum all Unit Holders or their proxies shall be counted.

15. Adjournment and Other Matters Relating to Meetings and Proceedings

(a) The Chairman may with the consent of any Meeting at which a quorum is present (and shall if so directed by the Meeting) adjourn the Meeting from time to time and from place to place but no business shall be transacted at any adjourned Meeting other than the business left unfinished at the Meeting from which the adjournment took place.

(b) When a Meeting is adjourned for 30 (thirty) days or more, notice of the adjourned Meeting shall be given as in the case of an original Meeting; but otherwise it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned Meeting.

(c) If within 1 (one) hour from the time appointed for the Meeting a quorum is not present the Meeting if convened upon the requisition of Unit Holders shall be dissolved, but in any other case it shall stand adjourned to the same day in the next week at the same time and place or to such other day and at such other time and place as the Chairman and in his absence the Trustee may direct.

(d) If a Meeting stands adjourned under sub-clause (c) above any two or more Unit Holders present at the place and time to which it so stands adjourned shall form a quorum and their decision shall bind all Unit Holders and where only one Unit Holder is present he may seek the direction of the Court to take a decision.

16. Powers and Duties of the Chairman of the General Meeting

(a) The Trustee or any person so authorised by it shall preside as Chairman at every Meeting or if there is no such Chairman or if he is not present within 1 (one) hour after the time appointed for the holding of the Meeting or is unwilling to act as Chairman, the Unit Holders shall appoint one of themselves as Chairman.

(b) The duties and powers of the Chairman shall include to:

(i) preserve order and the power to take such measures as are reasonably necessary to do so;

(ii) ensure that the proceedings are conducted in a regular manner;

(iii) ensure that the true intention of the Meeting is carried out in resolving any issue that arises before it;

(iv) ensure that all questions that arise are promptly decided; and

(v) act in the *bona fide* interest of the Fund.

17. **Resolutions Binding**

A resolution passed at a Meeting of the Unit Holders duly convened and held in accordance with these presents shall be binding upon all the Unit Holders whether present or not present at such Meetings and each Unit Holder shall be bound to give effect thereto accordingly and the passing of any such resolution shall be conclusive evidence that the circumstances justify the passing thereof, the intention being that it shall rest with the Meeting to determine without appeal whether or not the circumstances justify the passing of such resolution.

18. **Minutes of Proceedings and Effect**

(a) The Manager shall cause minutes of all proceedings of Meetings to be entered in the books kept for that purpose.

(b) Any such minutes purported to be signed by the Chairman of the Meeting at which the proceedings were held or by the Chairman of the next succeeding Meeting shall be prima facie evidence of the proceedings.

(c) Where minutes have been made of the proceedings at any Meeting of the Fund in accordance with the provisions of this section then until the contrary is proved the Meeting shall be deemed to have been duly held and convened and all proceedings at the Meeting to have been duly conducted.

19. **Inspection of Minutes Books and Copies**

(a) The books containing the minutes of the proceedings of any Meeting of the Unit Holders shall be kept at the registered office of the Manager and shall, during business hours, be open to inspection by Unit Holders without charge.

(b) A Unit Holder shall be entitled to be furnished within 7 (seven) days after receipt of his request by the Manager, with a copy of any such minutes duly certified at a charge to be fixed by the Trustee.

20. THE REGISTER OF UNIT HOLDERS

1. The Registrar appointed to keep the Register of Unit Holders on behalf of the Trustee (hereinafter referred to as the **"Registrar"**) shall act as registrar to the Fund and as such shall keep the Register in all respects in accordance with the requirements of the Trust Deed.

2. The Registrar shall maintain and conduct the Register in such form and in such manner as the Trustee may from time to time direct and shall permit no alteration in the form of the Register or its conduct without the consent in writing of the Trustee which the Trustee shall be entitled to give or to withhold as its entire discretion.

3. The Registrar shall promptly comply with all requirements which may be notified to it from time to time by the Trustee as to the form and conduct of the Register.

4. The Registrar shall at all times at the request of the Trustee provide the Trustee with all such information and explanations in relation to the Register and the conduct thereof as the Trustee may require.

5. The Registrar shall permit the Trustee or any person representing it to have access at all times to the Register and to all subsidiary records and all documents, orders, transfers, cancelled Statements of Unit Holding and other papers relating to the conduct of the Register.

   The Trustee, its authorized officials or any person representing it shall be entitled to attend at the Registrar's premises at any time with or without previous notice to inspect any documents the Trustee may wish to have inspected and to carry out such checks as the Trustee may deem fit.

THE THIRD SCHEDULE

Form of Redemption Notice

PACAM EUROBOND FUND

(Authorised and Registered by Securities and Exchange Commission in Nigeria as a Unit Trust Scheme)

Trustee: **CSL TRUSTEES LIMITED**

Manager: **PAC ASSET MANAGEMENT LIMITED**

I/We hereby give notice of my/our intention to redeem _____ Units in the PACAM EuroBond Fund represented by Statement Nos. _____ dated _____. The said Units are currently registered in the name of _____. Furthermore, I/we consent to the transfer of the Units to the Trustee, with effect from the date stated below and request that the proceeds of the redemption of the Units be paid to the above-named Unit Holder as follows:

(1) Direct Credit:

Name of Bank:
Branch/Address of Bank:
Account Number:

(2) Cheque:

Address of Unit Holder:

Dated the _____ day of _____ 20 _____

Signature:

Name:

Capacity:

Address:

OR

THE COMMON SEAL of the within named
Unit Holder: _____
was hereunto affixed in the presence of:

_____ _____

DIRECTOR **SECRETARY**

THE THIRD SCHEDULE

Form of Redemption Notice

PACAM EUROBOND FUND

(Authorised and Registered by Securities and Exchange Commission in Nigeria as a Unit Trust Scheme)

Trustee: **CSL TRUSTEES LIMITED**

Manager: **PAC ASSET MANAGEMENT LIMITED**

I/We hereby give notice of my/our intention to redeem _____ Units in the PACAM EuroBond Fund represented by Statement Nos. _____ dated _____. The said Units are currently registered in the name of _____. Furthermore, I/we consent to the transfer of the Units to the Trustee, with effect from the date stated below and request that the proceeds of the redemption of the Units be paid to the above-named Unit Holder as follows:

(1) Direct Credit:

Name of Bank:
Branch/Address of Bank:
Account Number:

(2) Cheque:

Address of Unit Holder:

Dated the _____ day of _____ 20 _____

Signature:

Name:

Capacity:

Address:

OR

THE COMMON SEAL of the within named
Unit Holder: _____
was hereunto affixed in the presence of:

_____ _____

DIRECTOR **SECRETARY**

THE FOURTH SCHEDULE

TRANSFER FORM

PACAM EUROBOND FUND

Registered and Authorized by the Securities and Exchange Commission as a Unit Trust Scheme

Trustee: **CSL TRUSTEES LIMITED**

Manager: **PAC ASSET MANAGEMENT LIMITED**

I/We hereby transfer the Units described herein out of the name(s) of the Registered Unit Holders named herein into the names of the Transferee(s) named herein. I/We request that such entries be made in the Register of the Fund as may be necessary to give effect to this transfer.

The Units

Number of Units in Words	Number of Units in Figures	Serial No(s) of Certificates representing Units

The Registered Unit- holders

Names	Addresses

The Transferor (if Different from the Registered Unit Holders)

Names (s) and Capacity	Addresses

The Transferees

Names	Addresses

Dated this ..... day of ..... 201....

IN WITNESS WHEREOF, the parties hereto have caused their respective Common Seals to be hereunto affixed the day and year first above written.

THE COMMON SEAL of the within named
Manager: PAC ASSET MANAGEMENT LIMITED
was hereunto affixed in the presence of:

DIRECTOR

BAMIDELE IGE

SECRETARY

OLANITI ABIOLA

THE COMMON SEAL of the within named
Trustee: CSL TRUSTEES LIMITED
was hereunto affixed in the presence of:

DIRECTOR

SAMUEL ADESANMI

SECRETARY

THE FIFTH SCHEDULE

INVESTMENT POLICY

The Fund seeks to ensure capital preservation and wealth maximisation for the Unitholders. Investments would be made in the best available opportunities, while considering acceptable risk parameters, the provisions of the Trust Deed and the SEC Rules and Regulations.

Determination of required returns for the Unitholders' wealth maximisation, along with other factors, is dependent upon certain key macro-economic indicators and comparable investment returns available in the market. Determination of risk parameters involves qualitative as well as quantitative analyses including comparison among the various instruments, volatility of the available returns on these instruments and macroeconomic indicators.

In line with the investment objectives, the investment policy of the Fund is to maintain an investment mix which optimizes the returns through active fund management. In order to achieve the parameters set by aforementioned policy, the Fund Manager shall determine or alter the investment mix of the portfolio from time to time keeping in view particular sector or company developments.

SUPPLEMENTAL TRUST DEED

TO THE

PACAM EUROBOND FUND

BETWEEN

PAC ASSET MANANGEMENT LIMITED (RC 69528")
(Fund Manager)

AND

FCMB TRUSTEES LIMITED (RC: 923220)

(Trustee)

THE TRUSTEE WILL BE LIABLE FOR BREACH OF ITS DUTIES WHERE IT FAILS TO CARRY OUT ITS RESPONSIBILITIES UNDER THIS TRUST DEED OR REPORT A BREACH OF THE TERMS OF THIS TRUST DEED TO THE SECURITIES AND EXCHANGE COMMISSION

Dated this.....day of 2020

ALLIANCE
LAW FIRM

71 Ademola Street, South West, Ikoyi, Lagos.
☎: 234-1-9035352-5, 234-1-2707471-2, 234-1-4604092, 234-1-4795950
Facsimile: 234-1-9035356
Email: info@alliancelf.com

THIS SUPPLEMENTAL DEED TO THE PACAM EUROBOND FUND ("Deed") is made the …… day of …….. 2020

BETWEEN

PAC ASSET MANAGEMENT LIMITED (RC No. 695281), a private limited liability company registered with Securities and Exchange Commission and whose registered office is at 8A, Elsie Femi Pearse, Victoria Island, Lagos, Nigeria (hereinafter called "the Fund Manager" or "the Manager" which expressions shall except where they are inconsistent with the context include the Fund Manager for the time being of the Fund hereby constituted) of the one part;

AND

FCMB TRUSTEES LIMITED (RC: 923220), a company incorporated under the laws of the Federal Republic of Nigeria and having its office at 17 A, Tinubu Street, Lagos (hereinafter referred to as the "Trustee") which expression shall where the context so admits, includes its successors- in-title and assigns), of the other part;

IN THIS DEED both the Fund Manager and Trustees may be referred to as Parties collectively or Party severally.

WHEREAS:

A. The PACAM Eurobond Fund is an open-ended Collective Investment Scheme authorized and registered in Nigeria by the Securities and Exchange Commission ("SEC") under the Investment and Securities Act ("ISA") 2007.

B. This Deed is supplemental to the Original Trust Deed dated……day of……, 2019, made between the Fund Manager and the Trustee (hereinafter referred to as the "Original Trust Deed")

C. This Supplemental Trust Deed is entered in accordance with the Special Resolution passed at the Meeting of the Unit Holders (as defined below)

D. The Fund Manager has sought and the Trustee has consented, subject to the terms and conditions of this Second Supplemental Trust Deed to modify the provisions of the Trust Deed as set out in this Supplemental Trust Deed.

THIS DEED WITNESSETH AS FOLLOWS:

1.0 INTERPRETATION

1.1 Save for as provided herein all words and expressions defined or given a particular meaning in the Trust Deed shall, where the context so requires or admits have the same meaning in this Supplemental Trust Deed.

1.2 In this Supplemental Trust Deed;

"Affiliate of a Related Party" means an affiliate of a related party having regards to a registered Collective Investment Scheme shall be any person, natural or corporate

falling within the categories of the parties listed below:

a) Companies that share personnel of the Fund Manager who hold administrative, management and Board position in the Company, in addition to front office staff engaged in investment management function of the CIS;

b) Companies that share personnel of the Trustee Company who holds administrative, management and Board position in the Company;

c) Companies that share personnel of the Custodian Bank or Central Depositary who holds administrative and management position in the Bank or Depositary;

d) Companies that are affiliates of the Fund Manager, Trustees or Custodians within the same financial group or another group;

e) Key persons undertaking asset management, investment analysis and other key front office tasks that impact or likely to impact the Fund;

f) Persons capable of exerting influence on management and Board decisions in related parties and their affiliates;

g) Other Collective Investment Schemes managed by: i. the Fund Manager; ii. an affiliate of the Fund Manager and/or companies belonging to the same group as the Fund Manager; iii. an affiliate of the Trustee and/or companies belonging to the same group as the Trustee; iv. a Company whether as affiliate, subsidiary or parent of the Fund Manager, Trustees or Custodian whose securities are unlisted or listed on a recognized securities Exchange;

h) Sponsor, administrator or managers of electronic/digital platforms which serve as channel for subscription to or redemption from, of units of an authorized CIS;

i) Companies which share interlocking directorship with the Fund Manager, Trustee or Custodian;

j) Companies that engage in principal transactions with the Fund Manager, Trustee or Custodian;

k) Companies/Entities with at least 5% shareholding or beneficial ownership in the Fund Manager, Trustee or Custodian;

l) Any other person(s) identified by the Fund Manager, Trustees to the Fund, the Custodian or the Commission as an affiliate of a related party.

"Benchmark" means the 5-Year Nigeria International Bond duly registered or recognized by the Commission used to measure the performance of this Fund and

	published from time to time on the FMAN Platform or other authorised platforms.
"CIS"	means Collective Investment Scheme
"Commission" or "SEC"	means the Securities & Exchange Commission established pursuant to the Investment & Securities Act 2007 as may be modified or amended from time to time;
FMAN	means Fund Managers Association of Nigeria
"Principal Transaction"	means a transaction which, singularly or in aggregate of over a 12- month period equals five percent (5%) or more of the Fund's net asset value (NAV), in which the Fund Manager of an authorized Collective Investment Scheme acting on behalf of the Collective Investment Scheme enters with an affiliate of a related party to a Collective Investment Scheme as defined under the SEC Rules.
"Related Party"	means having regards to a registered Collective Investment Scheme shall be the Trustee, Fund Manager and Custodian of such Collective Investment Scheme.
"Related Party Transaction"	means transactions between the affiliates of related parties and the Fund Manager acting on behalf of a Collective Investment Scheme.
"SEC Rules"	means the Rules of the Securities and Exchange Commission as amended from time to time
"Special Resolution"	means the Special Resolution passed at a duly convened and constituted Meeting of the Unit Holders held on the .....day of....., 2020, pursuant to Clause 44 of the Trust Deed, authorizing the modification of certain provisions of the Trust Deed and the execution of this Supplemental Trust Deed to reflect the modification thereto.

2.0 AMENDMENTS OF THE ORIGINAL TRUST DEED

With effect from the above first written, this Deed amends the Original Trust Deed on the terms set out herein.

2.1 The original Trust Deed is amended by the insertion of a new clause 46 (Benchmark) which shall provide as follows:

46. BENCHMARK

The performance of this Fund shall be measured or benchmarked against the 5 Year Nigeria International Bond duly registered or recognised by the Commission and published from time to time on FMAN website or other authorised platforms.

3.0 DESCRIPTION AND OBJECTIVE OF THE FUND

3.1 Clause 4.2 of the Original Trust Deed is amended to read

4.2 The objective of the Fund shall be income generation in Foreign Exchange.

4.0 INVESTMENT RESTRICTIONS

4.1 Clause 18.2 of the Original Trust Deed is amended (Investment Restrictions) to read:

18.2 No part of the Fund shall be invested in any units or securities of any CIS or any in-house investments of the Fund Manager, the Trustee or their associates ***except as permitted by the Commission".***

4.2 The Original Trust Deed is amended by the insertion of new Clause 18.3 (Investment Restrictions) to read:

18.3 The Fund Manager may invest in money market instruments issued by the Affiliates of a Related Party to a CIS only where the following conditions have been satisfied:

(a)

i. that the Money market instruments issued by a Related Party Affiliate shall not be below investment grade rating of A- and at yields better than prevailing market rates;

ii. that consent of the Trustees for compliance with pre- conditions for such investment shell be sought and obtained;

(b) The investment in money market instruments of a Related Party's Affiliates shall not exceed 5% of total value of money market allocation;

c) The Trustee shall ensure and report to the Commission compliance with limit set in (b) above. Provided that the Fund Manager is prohibited from undertaking investments on behalf of a CIS in the Fund Manager's, Custodian's and Trustee's assets/instruments.

4.3 The Original Trust Deed is amended by the insertion of new Clause 18.4 (Investment Objectives of the Fund) to read:

18.4 The Fund Manager shall not invest the assets of the Fund in money market instruments of a related party's affiliates provided that:

i. Money market instruments issued by such affiliate shall not be below investment grade rating of A- and at rates and conditions better than that prevailing in the market;

ii. The consent/approval of the Trustees for compliance with pre-conditions for such investment has been sought and obtained;

iii. Such investment shall not exceed 2% of 10% allowable exposure to liquid assets;

iv. The Trustee shall ensure and report to the Commission compliance with the condition set in (i) above

4.4 No part of the Fund shall be invested in any units or securities of any CIS investment scheme or any in-house investments of the Fund Manager, the Trustee or their associates ***except as permitted by the Commission.***

4.5 The Fund Manager may invest in money market instruments issued by the Affiliates of a Related Party to a CIS only where the following conditions have been satisfied:

(a)

i. that the Money market instruments issued by a Related Party Affiliate shall not be below investment grade rating of A- and at yields better than prevailing market rates;

ii. that consent of the Trustees for compliance with pre- conditions for such investment shell be sought and obtained;

(b) The Trustee shall ensure and report to the Commission compliance with limit set in (b) above. Provided that the Fund Manager is prohibited from undertaking investments on behalf of a CIS in the Fund Manager's, Custodian's and Trustee's assets/instruments.

4.6 The Fund Manager shall not invest the assets of the Fund in money market instruments of a related party's affiliates provided that:

i. Money market instruments issued by such affiliate shall not be below investment grade rating of A- and at rates and conditions better than that prevailing in the market;

ii. The consent/approval of the Trustees for compliance with pre-conditions for such investment has been sought and obtained;

iii. The Trustee shall ensure and report to the Commission compliance with limit set in (i) above

5.0 MANAGEMENT OF CONFLICT OF INTEREST IN RELATED PARTY TRANSACTIONS

The original Trust Deed is amended by the insertion of a new clause 47 (Management of Conflict of Interest in Related Party Transactions) which shall provide as follows:

47.1 The Fund Manager shall establish a conflict of interest policy and procedure for the management of real and potential conflict of interest between the Fund, the Fund Manager, Trustees, Custodians and Affiliates of each

47.2 All conflict of interest policy and procedure for the management of real and potential conflict of interest shall mandate that all services or transactions undertaken by the Fund Manager on behalf of the Fund with the Affiliate of a Related Party shall be done at arm's length and at terms based on cost, price, and prevailing market conditions in the interest of the Fund;

47.3 All conflict of interest policy and procedures for the management of real and potential conflict of interest shall mandate that any service contract between a Related Party and an Affiliate of a Related Party with potential of conflict of interest between a Fund and Affiliates of Related Parties of the Fund be fully disclosed to the Commission

47.4 The Fund Manager shall be required to disclose to the Commission having obtained the Trustees consent for purchases of securities of a Related Party and an Affiliate on behalf of the Fund by the Fund Manager in which its Affiliate acts as Issuing House/Underwriter to an offer

47.5 The Fund Manager shall be required to disclose to the Commission purchase of securities where the Fund Manager and Trustee have;

47.5.1 shown the transaction to be in the best interest of the Collective Investment Scheme

47.5.2 shown the transaction to be carried out at arm's length

47.5.3 made full disclosure to the Commission on transaction cost and terms with the Affiliate of a Related party

6.0 COVENANT TO APPROVE AND INSTITUTE GUIDELINES, POLICIES AND PROCEDURES FOR MANAGING CONFLICT O FINTEREST

The original Trust Deed is amended by the insertion of a new clause 48 (Covenant To Approve And Institute Guidelines, Policies And Procedures For Managing Conflict of Interest) which shall provide as follows:

48 The Fund Manager covenants that its Board shall:

a) Approve and institute guidelines, policies and procedures for managing conflict of interest on related party transactions for Collective Investment Schemes and all asset management operation;

b) Identify and manage real and potential conflicts of interest in its overall asset management operations including its management of authorized CIS in line with the policies and procedures established in (a);

c) Strictly enforce policies on conflict of interest management and guidelines on related party transactions undertaken for and on behalf of an authorized CIS;

d) Report/disclose to the Commission (in its quarterly returns), and Trustees of all related party transactions, service contracts/agreements; fees, commissions, transaction costs arising from transactions or service provision with related parties of the Fund Manager and showing comparable best market price and cost to support that the transaction and service were carried out at terms and prevailing conditions in the best interest of the CIS;

iv. Maintain a record of all transactions and service executions undertaken with the affiliate of a related party on behalf of the CIS.

7.0 CONSENT TO PRINCIPAL TRANSACTIONS

The original Trust Deed is amended by the insertion of a new clause 49 (Disclosing Obligation of The Fund Manager On Related Party Transactions) which shall provide as follows:

49. The Fund Manager shall be required to obtain the Trustees consent in respect of:

a) Principal Transactions on behalf of the Fund by the Fund Manager with its Related Party Affiliate as counter party or vendor to ensure that cost, terms and conditions of the transaction are carried out at better terms and price than prevailing market condition;

b) Principal Transactions for sales or purchase of securities in the secondary market where the Affiliate of a Related Party acts as broker or intermediary for such sale or purchase showing the price or cost at which the transaction was made as compared to the highest and lowest price for the similar transaction in the market for that day.

8.0 DISCLOSING OBLIGATION OF THE FUND MANAGER ON RELATED PARTY TRANSACTIONS

The original Trust Deed is amended by the insertion of a new clause 50 (Disclosing Obligation of The Fund Manager On Related Party Transactions) which shall provide as follows:

50 The Fund Manager shall file periodic reports (quarterly and annually) disclosing the following:

a) All service contract with Affiliates of Related Parties such as securities brokerage, advisory, marketing fees and aggregate cost of such services to the Fund in absolute amount and as percentage to total operating cost;

b) Investment/portfolio holdings in securities, instruments issued by affiliates of related parties showing aggregate value and percentage composition to the Fund net asset value;

c) Principal Transaction (purchase or sale) of securities and assets between the Fund Manager of the authorized Fund and Affiliates of Related Parties showing purchase cost or sale price, best prevailing market price or cost at the time of transaction, evidence that the transaction was carried out at best execution price or under terms same or better than prevailing market condition at time of transaction;

d) Principal Transactions (purchase or sale) of securities and assets between the Fund by the Fund Manager acting on its behalf, and a client of the Fund Manager under discretionary portfolio management service of the Fund Manager or Affiliate of the Fund Manager, showing price or cost of the transaction and best market price or cost of similar transaction for that day;

d) A primary market transaction involving the subscription to securities offerings at the primary market by the Fund Manager of the Fund in which an Affiliate of a Related Party acts as Issuing House/Underwriter disclosing the number of units/shares and value of securities subscribed for, percentage composition subscribed and total subscription of the offer.

9.0 PAYMENT OF REMUNERATION OF FEES

9.1 Clause 8.1of the Original Trust Deed is hereby amended to read;

8.1 The remuneration of the Manager and all other administrative fees shall accrue on a daily basis. At the end of each month, all such sums as have accrued shall be transferred from the Fund Trading Account into the Fund Expense Account from which the relevant sums will be paid to the respective professional parties quarterly in arrears PROVIDED however that the annual management fee and other expenses, shall not exceed 3.5% of the Net Asset Value .

9.2 Clause 8.2 of the Original Trust Deed is hereby amended to read;

8.2 The Manager shall be entitled to an annual management fee of 1 % of the Net Asset Value of the Fund. The Manager shall be entitled to an incentive fee not exceeding 20% of total returns above the Fund's. Provided that:

(i) the Fund's stated benchmark shall be reflective of the nature of the Fund and its underlying instruments;

(ii) the Fund is actively managed;

(iii) where a Fund underperforms its benchmark, the management fee charged shall decrease by the same percentage by which the Fund underperformed;

(iv) the fund performance must have reached a high-water mark which is when the Fund's value (per unit basis) exceeds its highest historical record.

10.0 INVESTMENT COMMITTEE

10.1 Clause 15.1 of the Original Trust Deed is hereby amended to read;

15.1 The Fund shall have an Investment Committee which shall hold investment committee meetings quarterly, and shall comprise of not less than four (4) members with two representatives from the Fund Manager, one representative from the Trustee and one independent member. The Manager shall from time to time consult with the Investment Committee on its decisions to purchase sell or alter any investment made by it under this Deed.

11. INCORPORATION OF THE TRUST DEED

11.1 Subject to the terms herein all provisions terms and conditions contained in and subsisting under the Trust Deed shall remain valid and be deemed to have been incorporated into this Supplemental Trust Deed and shall apply mutatis mutandis to this Deed and be observed and performed by the Parties hereto in the same manner as if they were set out herein in extenso

IN WITNESS WHEREOF the parties hereto have hereunto caused their respective Common Seals to be affixed the day and year first above written.

THE COMMON SEAL of the within named Fund Manager / Manager
PAC ASSET MANAGEMENTLIMITED
was hereunto affixed in the presence of

.....
DIRECTOR

.....
DIRECTOR

THE COMMON SEAL of the within named Trustee
FCMB TRUSTEES LIMITED
was hereunto affixed in the presence of

.....
DIRECTOR

.....
DIRECTOR